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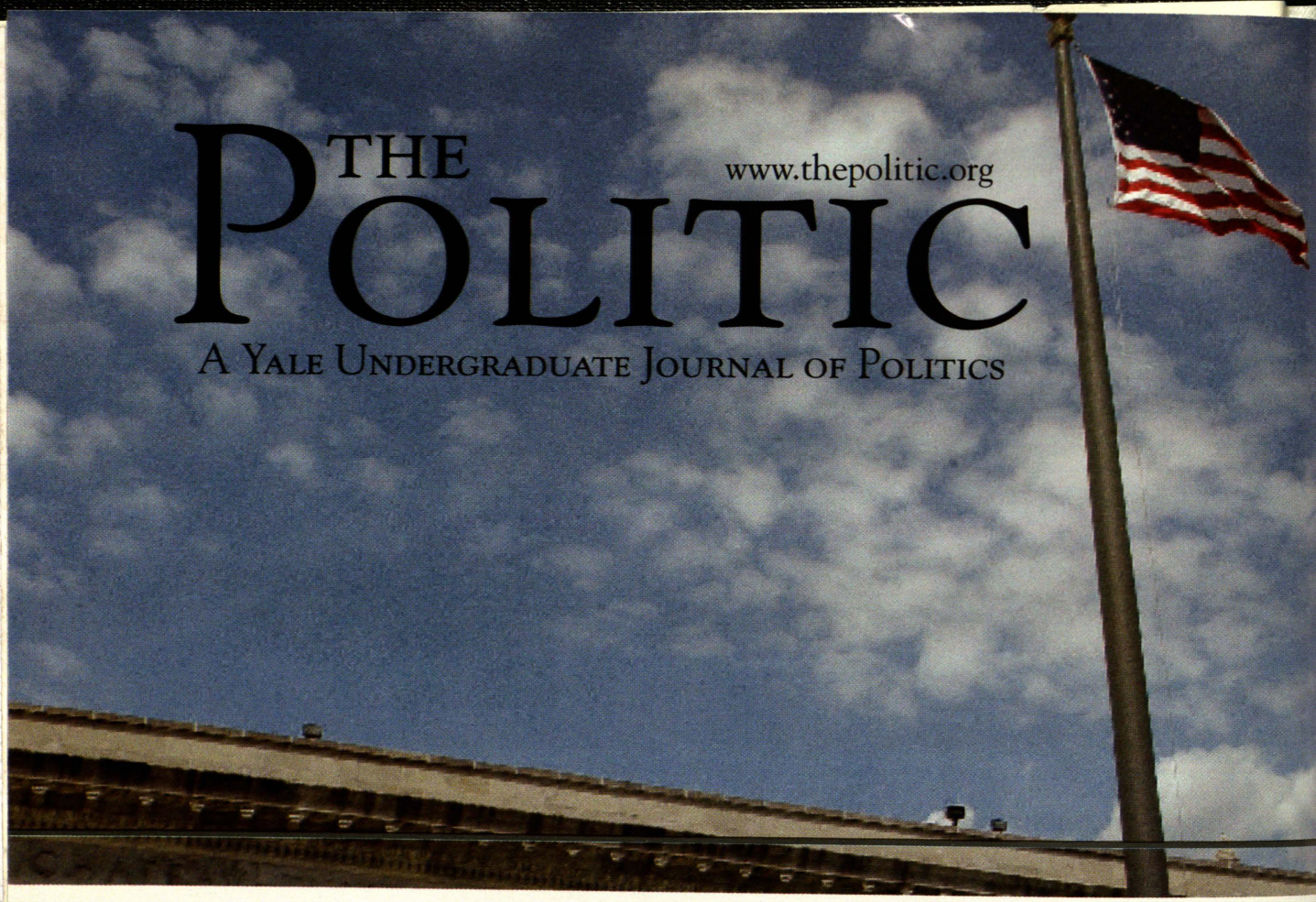
THE POLITIC

Winter 2010 A Yale Undergraduate Journal of Politics Volume LXIII, Issue 2

The Price of WAR:

rivate Military Contractors in the Modern Age



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THE POLITIC

Winter 2010 - Volume LXIII, Issue 2

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Winter 2010

Dear Reader,

On December 1, 2009, President Obama announced a new Afghan strategy involving an escalation of more than 30,000 U.S. troops. While the decision created a media frenzy in the U.S. and around the world, plans for another Afghan surge went largely unnoticed. According to a Congressional Research Service report produced the same month, President Obama's escalation could be accompanied by a surge in private military contractors (PMCs) numbering as high as 56,000. Put simply, private military contractors will outnumber American soldiers in Afghanistan by as many as 60,000.

PMCs provide a range of essential services for military, from supplying food and laundry to guarding convoys and even military bases. Although these services were once performed by military personnel, they have since been outsourced so a slimmed-down military can focus on combat operations. While proponents argue that U.S. military operations are now the best supplied and equipped in their history, the heavy reliance on civilians for what were once military tasks has profound implications. The Department of Defense (DoD) now employs hundreds of thousands of contractors, but still lacks a comprehensive strategy to supervise and monitor their actions. According to contributor Peter W. Singer, Senior Fellow at Brookings and author of *Corporate Warriors: The Rise of the Privatized Military Industry*, "As much as $10 billion dollars have gone missing or been misspent by private military contractors in Iraq. Literally thousands of weapons have similarly disappeared in Iraq and Afghanistan."

The human costs are even more substantial. On September 16, 2007, 17 Iraqi civilians died when guards from Blackwater USA, now renamed Xe Services, opened fire in Nisour Square, Baghdad. The fatalities occurred while the guards were escorting a U.S. State Department envoy through western Baghdad. While the facts are still in dispute, military officials later reported that the guards opened fire without provocation and used excessive force. In January of this year, Department of Justice officials announced that they are investigating Blackwater for allegedly authorizing payments of $1 million to Iraqi officials for an Iraqi operating license. Blackwater's license was revoked by the Iraqi government soon after the Nisour Square shootings.

In theory, the U.S. Military Extraterritorial Jurisdiction Act gives U.S. Federal Courts jurisdiction to try criminal offenses committed by civilians hired by the DoD and other agencies that support DoD missions. Yet crimes committed outside the U.S. often go either unreported or are too difficult to investigate. Another obstacle involves the legal status of contractors not working for the DoD but another agency such as the State Department. In this scenario, as was the case of Blackwater in Nisour Square, PMCs operate in a grey zone of legal immunity.

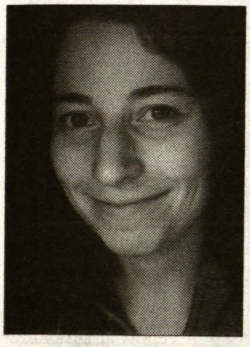
The military's use of PMCs may have vastly improved the supply and equipping of American combat operations, but a greater question remains: will the hidden ethical, monetary, and human price of PMCs undermine the long-term efficacy of relying on civilians for military tasks? In this issue of The Politic, Hannah Meyers and Ruta Nimkar, graduate students in international relations and participants in Stuart Gottlieb's seminar on PMCs, discuss the the risks of private contractors and the difficulties of regulating their behavior. Retired U.S. Army Lt. General Steven Arnold provides a countering view, discussing the substantial logistical and tactical advantages of utilizing PMCs and the unfair treatment of PMCs by the media. J.J. Messner of the International Peace Operations Association (IPOA), an advocacy and research group representing 60 PMCs worldwide, explains the role of the IPOA 'Code of Conduct' in regulating the behavior of member companies and ensuring accountability. Director of the 21st Century Defense Initiative at the Brookings Institute, Peter W. Singer, reveals the hidden monetary and human costs of PMCs and the measures that the government must take to ensure oversight and accountability. Laura Dickinson, Faculty Director of the Center for Law and Global Affairs, discusses the consequences of utilizing PMCs for "public law values," or those values embedded in international human rights law, international humanitarian law, public participation, and transparency. Finally, Florence Rogatz Lecturer in Law at Yale, Eugene Fidell, discusses the criminal and civil litigation brought against the Blackwater personnel from Nisour Square and the possibility of achieving justice for the 17 Iraqis killed.

A report by the International Peace Research Institute in Oslo from January 2009 once argued that "the debate over whether and how to utilize private military and security contractors generates much heat but not much light." In this issue of The Politic, we are bringing both.

Sincerely,
Mathew Andrews and Edward Fishman

Supply-Side Soldiers

An Interview with Ruta Nimkar and Hannah Meyers



Conducted by Rachel Marcus

Hannah Meyers and Ruta Nimkar are teaching assistants for Stuart Gottlieb's lecture course, Central Issues of American Foreign Policy. As part of their graduate program in international relations at the MacMillan Center, their student group worked with Professor Gottlieb to write the whitepaper, "Soldiers of Misfortune? The Rise of Private Military and Security Companies," which was presented in December. Hannah Meyers graduated from Dartmouth with a B.A. in Political Theory in 2004. Ruta Nimkar graduated from Oxford with an B.A. in Economics and Management in 2002.

In December you presented your White Paper on Private Military and Security Companies (PMSCs). Can you briefly describe and define what exactly you have focused on concerning PMSCs at Yale this semester?

This semester we have been writing a policy White Paper for the Policy Workshop Graduate Seminar about PMSCs. This paper examines the factors driving the recent growth of the PMSC industry, details some potential ramifications of this growth, and outlines several policy options available to governments.

What do PMSCs have to offer in terms of supply and demand? Why are they appealing options to countries like the U.S.?

The recent rise of private military and security firms poses a unique policy challenge. These firms were almost non-existent during the Cold War, but during the 1990s, accompanying the government push toward downsizing, the PMSC industry grew rapidly. This growth is due to several factors. First, PMSCs offer flexibility for countries that need surge capacity on short notice, so that a country does not have to move to a war footing. Mobilizing national armies, for the U.S. or the U.K. or another developed country can be a lengthy process. The use of PMSCs grants countries more access to troops when necessary and with relatively few bureaucratic hurdles. If national troops were used, the entire military-industrial complex would be mobilized to a greater extent. PMSCs also offer benefits in terms of downsizing and outsourcing. Contractors are cheaper than investing in capacity in-house and PMSCs mitigate political risk, as the government can take action without being officially associated with these actions.

> *"Because PMSCs were created to maximize profit, they have incentives to cut costs sometimes at the expense of operations."*

Have there been any major successes or achievements that could not have been accomplished without PMSCs?

Both Sierra Leone and Angola present examples of successes which could not have been accomplished without PMSCs. During the 1990s and early 2000s, Sierra Leone was involved in a protracted civil war. At one point, the rebels (the RUF) began attacking the capital city, Freetown. On the advice of a mining company, the government hired a PMSC named Executive Outcomes (EO). The PMSC drove the rebels away from the capital city in 3 weeks, and established stability in the country in 2 months. While Executive Outcomes was being used by the government, free and fair elections were held in Sierra Leone for the first time in over 10 years. Other organizations such as the UN and ECOMOG had previously tried to achieve stability in Sierra Leone and failed, which makes EO's success even more remarkable.

You mentioned in your White Paper that PMSCs often incur hidden costs for the government? Can you describe a few of these? Are there other operational risks?

Some hidden costs involved in PMSC use include the duplication of services. For instance, sometimes a task can be reassigned from one government section to another (e.g. from the State Department to the Department of Defense). However,

it may be impossible (because of the contractual terms) for the first department (e.g. State) to cancel its contracts with PMSCs. This leads to a duplication of effort: the Department of Defense will be accomplishing the task, and the PMSC will be paid, although their services are not required. Other hidden costs involve the fact that PMSC contracts are often entered into during emergency situations. Because the governments require services urgently, they are unlikely to negotiate these emergency contracts effectively. The contracts are unlikely to be renegotiated and therefore the government can be stuck with long-term and expensive contracts.

A U.S. soldier examines the wreckage of a downed helicopter belonging to Blackwater Security. Meyers and Nimkar argue the lack of a clear policy environment regarding PMSCs has led to difficulties in interacting with and assisting such companies in active warzones. (Army of Dude/Flickr)

Other operational risks involve the private nature of PMSCs. Because PMSCs were created to maximize profit, they have incentives to cut costs, sometimes at the expense of operations. For instance, Blackwater's decision to send too few people and unarmored cars on a convoy was partially responsible for the Fallujah incident on on March 31, 2004, in which four American PMSC employees were killed by Iraqi insurgents and their bodies tied to a bridge. When the convoy was attacked, the PMSCs were captured and killed by the insurgents, and the deaths made national and international news. Blackwater had only recently been awarded the contract under which the Fallujah convoy functioned. It therefore did not have access to enough resources to adequately guard the convoy – too few people were posted to the convoy (four soldiers, whereas the standard number is six) and the contractors were given inadequate equipment (unarmored cars).

Many are worried about the use of PMSCs abuses abroad and the effect these abuses have on U.S. efforts in Iraq and Afghanistan. Do you think these concerns are justified? Are events like the shooting of civilians in Baghdad's Nisoor Square by Blackwater employees rare incidents that get widespread publicity?

I think incidents like Nisoor Square are primarily rare moments; after all, armed contractors (like those at Nisoor Square) consist of only 7 to 8 percent of the total contractor force in Iraq and Afghanistan. However, the incidents do highlight the legal and regulatory gap surrounding PMSCs, and the need to ensure that an adequate framework is built to address potential contractor transgressions.

"At the moment, there are no stringent policies regulating PMSCs."

What is your view on the regulatory policy regarding PMSCs in the United States? Do you think it would be better if we had more policies specifically regulating PMSCs, and if so, what would be the most important issues to address in such policy?

At the moment, there are no stringent policies regulating PMSCs. There is an Army Field Manual guiding Department of Defense interactions with contractors, but the State Department has no such guidelines and there is no overarching government framework. In order to ensure a clear policy environment, to make contractor use more consistent, and to address gaps in contractor accountability, it is necessary for the U.S. to develop clear contractor policies.

Some important policy proposals would include the legal status of contractors--are they accountable under the Uniform Code of Military Justice (UCMJ), International Humanitarian Law (IHL), and the Geneva Conventions? They would also include enforcement of self-regulatory policy (e.g. are contractors members of the International Peace Operations Association), the use of contractors (e.g. convoys and protection of facilities), and communication (e.g. how should armed contractors communicate with troops and should troops be informed ahead of time about contractor activities that might affect their region).

On an international level, the recent Montreux Document introduced a variety of obligations and responsibilities concerning PMSC regulation that countries should follow. Can you talk briefly about the major points of this document

and what are some of the problems facing international regulation of PMSCs?

One of the major points of this document is that the successful regulation of PMSCs must be a multi-organization initiative: the host country, home country, and the PMSC itself must be involved. Significantly, the Montreux Document outlines a code of conduct for PMSCs and holds home and host countries to a given set of regulations. This clarification of the policy environment is essential.

The major problems facing international regulation are those

South African private military contractors guard the Prime Minister of Iraq [suit and glasses] during a ceremony marking the handover of Dhi Qar province from Italian to Iraqi control in September 2006. (Jim Birt/Flickr)

of widespread acceptability. At the moment, only a few countries have signed the Montreux Document. Countries are reluctant to limit their actions and their options with regard to contractors. Also, many countries have not yet realized that there is a significant policy difference between mercenaries and PMSCs, and that this new industry requires different regulation. At the moment there is a clear international prohibition on the use of individual mercenaries: this can be seen in the United Nations' Convention against the Recruitment, Use Financing and Training of Mercenaries and in Article IV of the Geneva Convention, which states that mercenaries are not to be given prisoner of war status. No such prohibition exists against PMSCs--in fact, even the UN and NGOs occasionally make use of PMSC services. Ongoing conflicts, and the need to use PMSCs in these conflicts, make it difficult for governments to step back and reform their own policies.

How are exactly are PMSCs used by non-state actors?

PMSCs are used by NGOs and transnational corporations in a wide variety of ways. Oil companies, mining companies and other companies with significant physical investments in unstable environments use PMSCs to ensure security at oil platforms, mining sites, etc. NGOs use PMSCs for activities such as de-mining in post-conflict areas and protection of convoys carrying humanitarian, food, and medical supplies.

That being said, what do you consider to be the most likely future regarding national and international PMSC regulation?

The current trend is toward more regulation of PMSCs. Currently, organizations such as the Congressional Research Service are gathering data on PMSC use and PMSC experts such as Peter Singer (of the Brookings Institute) are contributing research to the government concerning how to conduct PMSC regulation policy. The final policies that emerge will depend on several constraints including budgetary issues, public opinion, and the inertia created by lobbying groups.

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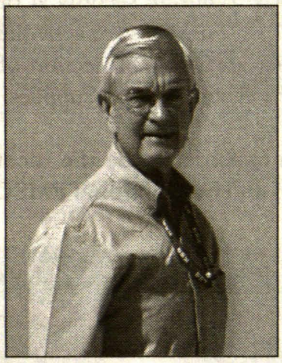
A Necessary Intervention

An Interview with Retired U.S. Army Lt. General Steven Arnold



Conducted by Jaclyn Delligatti

Arnold recently retired as President of Ecolog USA, after founding the company in September, 2007. Before joining, Ecolog, Steve was the Vice President/ Program Manager of LOGCAP III, Middle East/Central Asia for KBR. Arnold served in the United States Army for nearly 35 years, culminating his service as the Commanding General for the Third United States Army. His assignments included tours in Vietnam, Korea, Germany, Somalia, and Desert Storm in Saudi Arabia, Kuwait and Iraq. He graduated from West Point and subsequently received MS degrees from Auburn University (Political Science) and from the University of Southern California (Systems Management).

First, could you tell us a bit about your background with private military contractors (PMCs)?

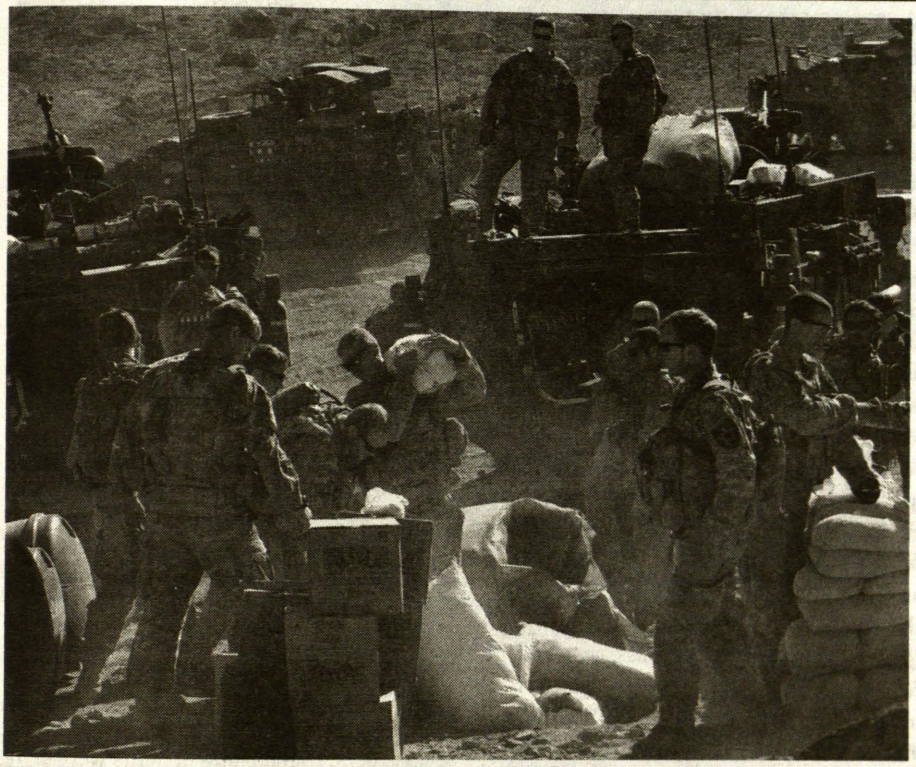
I spent a number of years serving in the United States Army. The first real experience I had with private military contractors was when I was the Commanding General of the U.S. Army Division operation in Somalia. When I went in there, there was literally almost no infrastructure. It was really chaotic. We had to spend a a lot of our time taking care of soldiers, doing the mundane things that just have to get done if the operation is going to be successful. You always need someone to feed and shower your soldiers, you need to find a way to get their uniforms washed, those things are just the reality of the battlefield. After 45 days a company that would later become Kellogg Brown and Root (KBR) arrived saying they had been given a contract to support us. We could then focus on the mission outside the compound, outside fighting where we belonged. It sort of changed my view in a positive way with contractors and their ability to provide for the logistical necessities that we had for so long been bogged down with. Years later I ran KBR operations in Iraq, Afghanistan and six other countries, with over 20,000 employees. One of my subcontractors that supported KBR was a German company called Ecolog. The operations were certainly exhausting, and after a few years I retired. However, German Ecolog asked me to start a U.S. company working out of Afghanistan and Iraq. After all of this I have learned that these private contractors perhaps support the U.S. military more than the government does.

> ***"I have learned that these private contractors perhaps support the U.S. military more than the government does."***

You say the US army in this age cannot go to war without contractors. Why is that the case? If that's so, how much power should we be giving them in places such as Iraq and Afghanistan? Does the United States legislature need to pay more attention to PMCs?

In 1989, the U.S. Congress and the American people were anxious to reduce military expenses and costs. The U.S. military and all of its equipment, training and benefits were being cut, and the government decided to keep many of their direct combat soldiers and to reduce a lot of their overheads (logistics personnel in particular). To cover anything beyond that, they let a contract called LOGCAP to preplan for contingencies and to leverage the existing civilian resources. It was a 10-year IDIQ (Indefinite delivery/ indefinite quantity), which demanded they be ready to come support our troops when needed. But the U.S. really started considering PMCs seriously in the 1990s. Our structure had been shifted to fight contingency operations. By then they were into LOGCAP's third contract. Because the Iraq war became more long-term, these companies began to augment military operations and personnel: U.S. military forces were no longer enough to get the job done. If you go to war for over 1,600 days, you are going to need contractors to help.

By June of last year, the number of private military contractors in Iraq had reached over 74,000. Now that the US has changed its direction in Iraq, how do you predict that number will change, or how has it started to change, considering that PMCS are also useful in rebuilding infras structure, etc? When will there no longer be a need for them in Iraq?



U.S. troops provide aid to forces stationed in the town of Rajan Kala, Afghanistan in December 2009. Arnold argues that PMCs free up American troops from supply operations and gets them back into combat. (U.S. Atmy/Flickr)

As troop levels come down, so will requirements for contractors. Some brave souls will stay, and will risk contracting with Iraqis directly. But the question will be, who will pay them, and will they pay in time? In Iraq, that will hardly be a guarantee. But for the bulk of contractors, you will see a similar withdrawal in Iraq as troop decrease takes place. But keep in mind getting combat troops out is not getting all troops out. And as troops withdraw, you still have millions of dollars worth of equipment to account for. That includes vehicles, water purification plants, ice-making equipment, waste management equipment, tons of stuff. Do you just walk away from all of that? I don't think so. But calculations estimate it will take around three years to remove all of the necessary equipment, where it will be stored and repaired in the U.S. for future use, or shipped to Afghanistan for immediate use. Pulling the troops out of Iraq next summer is not going to mean an immediate end for PMC occupation there. You are going to have a training mission afterward that will continue on for a while, as well as the logistical mission of pulling all equipment out. We hope that as all of this is going on, we will have an ally in Iraq, and perhaps we will be providing military assistance to Iraqis to keep them protected against Iranians.

President Obama has repeatedly called defense contractors to task since taking office. "In Iraq, too much money has been paid out for services that were never performed, buildings that were never completed, companies that skimmed off the top," he said during a March speech. Do you agree with that?

Well, we have to remember that there are humans in this outfit, and inevitably some of them get out of control and do silly things. Keep in mind there are more contractors than there are soldiers in Iraq and Afghanistan. There are a huge number doing their job very well, but a few are doing it incorrectly. We are led to believe by the media that the number of contractors doing bad things on pricey taxpayer dollars is higher than it is, but that is simply not true. People do not realize that there are a number of situations in which operations can inevitably be mismanaged, and private contractors have little control over that in the current system. They are working 18 hours a day, and their presence is growing rapidly to get these major tasks done. So yes, perhaps they do make some mistakes, but I do not think that can be avoided unless the system is changed. We probably have disconnects between what the military commander wants, what the contract authorities have written, and what the contractor understands. And so a lot of these bad allegations are because of the system. Are they all that way? No, of course not. There are some who have cheated, but they are the minority. We have some really good professionals on the ground.

How do you think the role of PMCs, particularly in Afghanistan, will change now that Obama is president?

The situation in Afghanistan is fundamentally different from that in Iraq. Afghanistan is a landlocked country, and we must bring our supplies in through Karachi. Often you are relying on small business operators hauling American supplies through all of Pakistan. This is a challenge, and we do not always have 100 percent returns. Security and communications are always a challenge. The big difference we are seeing, and have seen for the past 6-7 months, is that the strategy has changed. In Afghanistan, we are moving troops into the interior, into small installations, which was not the case in Iraq. It is a high adventure for contractors to provide

supplies to small, remote outposts in Afghanistan, and oftentimes you must rely on volunteers. So generally, PMCs are dealing with a much more dispersed operation in Afghanistan. It is going to be a little more austere than in Iraq. The other big difference is that you could more easily get supplies into Iraq. You could do so manageably through Kuwait, Jordan, or even Turkey. In Afghanistan, it is 700 miles to the closest port. You cannot often trust the flow of supplies. Just getting basic items of supplies to American soldiers is both expensive and difficult. At KBR, we would keep 120 to 160 days worth of supplies on hand of things that would not spoil. You did not know when your logistics chain would be interrupted, and you did not know for how long that would happen. But despite the difficulty, we will absolutely see an increased PMC presence in Afghanistan as well. Ecolog has over 1000 employees in Afghanistan. Our biggest customer is the German army, and the growth of our contractors will be imminent. If you have 25,000 troops to support--with the number getting larger--you will need outside help. You make it as efficient as you can, especially when they are spread out among 50 different installations of 300 people or so.

Blackwater security forces patrol the 9th ward district of New Orleans in the aftermath of Hurricane Katrina. Arnold talks of the use of private military contractors for humanitarian as well as military aid. (ussocom_ru/Flickr)

Following the September 2007 shooting incident involving Blackwater personnel in Iraq (in which 17 Iraqis died), critics have repeatedly argued that PMCs are insufficiently monitered and regulated. How do you respond to these claims?

Well, there are some that are guilty of things they should be prosecuted for, there is no doubt about it. But I would contend that that is a very small number. The picture painted for the American public is skewed. That is not accurate, and it is not fair. Unfortunately, that is going to continue. Most are not going to report in a fair and balanced way what most contractors are really doing. Normally, the contractors who receive most of the negative attention are those who are actually providing security. And when you look at that long laundry list of services provided by PMCs, you realize that the amount of contractors providing security is really actually a small number. Unfortunately, that is what is newsworthy. It becomes newsworthy when these people sometimes pull triggers because they think they are in a situation that demands it. For that reason, I hope we move away from using private contractors to provide security. You run into some different rules of engagement, some different control mechanisms. For instance, Blackwater was not controlled by the military, they were controlled by the State Department, who did not know how to control security forces. But just doling contracts out for the best value and hoping that they do things right is not likely. Security takes well-trained troops, and that is often complicated. However, it also takes a certain level of control that I am not sure Blackwater had. If nothing else changes, I would hope they at least charged the Department of Defense with controlling those contracts. Years ago, the State Department was not allowed to contract for security (as they were for technical advice and logistics), and these security forces were initially not subject to local laws. Do not go there would be my advice, and then a lot of the negative attention could be avoided. Unfortunately, we are already well down that track.

What about the relationship between PMCs and the American media? Do you think they portray the actions of PMCs in a fair light?

In fairness, doing laundry is not news, waste management is not news, providing clean water is not news. But providing dirty water is news. Again, the one tricky area used by the State Department that has caught media attention is using contractors as security forces. That is probably the lightning rod of contractors on the battlefield. Security forces being provided by contractors leads to a lot of legal challenges in countries. But the contrary leads to needing an increase in force structure, which is often difficult to supply. When I was running KBR, there had been 53 employees killed in Iraq and Afghanistan, and the majority of those were truck drivers. About 1000 drivers were on the road every day providing fuel, food and other supplies

to soldiers. Those drivers were at risk in those highways all the time, and were rarely reported on. The nature of the wars today is different than our previous experiences to some degree. I think they do their job based on newsworthy topics. Do they give a proper perspective to the American people on what contractors do? No, they don't. But they are only concerned with what is newsworthy, and that is what the public wants to read about. Consequently, the extreme is that many Americans will think these contractors are just fat cats getting rich, causing all problems, and that we must get rid of them.

How do you view the emergence of PMCs in global warfare and humanitarian efforts? Do you see the further privatization of the military as a whole (intelligence gathering, drone attacks, combat, etc)? Do you believe any functions should remain inherently governmental and never be privatized?

What I would prefer and what I think are two different things. What I would prefer is that we control our destiny, and that all efforts be left to the control of the U.S. military. The military has a large civilian workforce, they just happen to not be in uniform, but they are around the world providing high skilled services in the intelligence arena, and other arenas you don't expect. That is preferred. What I am concerned about is that we will also draw down more force structure in Iraq and Afghanistan, and our dependence on private contractors will become inevitable. When you get down to specific skill sets you have to run the numbers, so I cannot say with 100 percent certainty that contractors will be cheaper. But the benefit with contractors is that you can write an IDIQ contract where you only pay until you need them. But it always comes back to cost. You are only going to buy so much force structure, but you leave contingencies to private contractors.

> *"The picture painted for the American public is skewed. That is not accurate, and it is not fair. Unfortunately, that is going to continue."*

Are PMCS in effect stealing our best servicemen with offers of higher pay? What long-term implications does this have on our fighting force?

Soldiers are more costly than contractors. People will argue that on both sides of the issue, and I have done so. It's the question really of what's the commitment. The reason I think that the military would not like to see an increase in the presence of PMCs in this way is that the U.S. troops would prefer to control their own destiny and resources. It's not necessarily true that they have a negative view of contractors, this is just a new way of doing business. Let's say you have a core commander in Iraq. He is a three star general, he issues some guidance and orders and they go forth and execute it. To do that with a contractor, there is less accountability. He has to go through contracting officers, he has to write up requirements and standards, and there are volumes and volumes of manuals telling people how to deal with contractors, and it is often not easy for a commander in the field to execute orders. You must go through a ton of control mechanisms. I don't mean to say that it cannot be done, it's done all the time. It's just another hurdle for the commander. But perhaps it would be easier if the military controlled all of these resources.

So how can we make the system less complex, and less bureaucratic? How can Americans be assured that private contactors are necessary?

Right now we don't have a good system, but we have been using the same one for years. What KBR and all of the big contractors do is they find people who understand Federal Acquisition Regulations, and you must understand these requirements. We are using an antiquated system that makes contractors pull their hair out, and it's easy to make errors. The future really needs an overhaul of this system. The way I tried to make it work for KBR was to get my people and myself at the table with commanders and saying treat your contractors just like you would treat any of your other unit commanders. Make it non-adversarial, make it a team effort, and everybody wanting to support soldiers on the battlefield. And maybe that's too idealistic, but I think it is worth a try.

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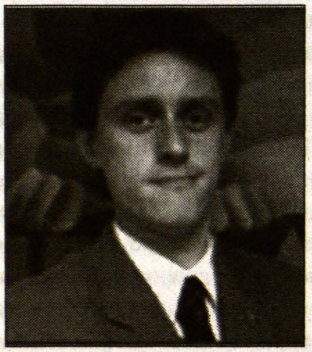
The Contractors' Code

An Interview with J.J. Messner



Conducted by Mathew Andrews

J.J. Messner is currently the Director of the International Peace Operations Association. Originally from Adelaide, Australia, Messner received his Master's degree in Peace Operations from the George Mason University School of Public Policy, where he specialized in refugees and post-conflict elections, with an emphasis on the fledgling nation of Timor-Leste.

Could you provide some background on what the International Peace Operations Association (IPOA) is? What is the goal of the organization?

We really began during the conflict in Sierra Leone. A number of human rights lawyers and NGOs observed the work that the private sector was doing at the time to support the peace operations conducted by the United Nations and regional organizations. It was concluded by a number of people there that the private sector could provide valuable support to peace and stability organizations. However, there needed to be some kind of regulatory regime and some kind of accountability for these companies. Even though they did a very good job in Sierra Leone, who knows what will happen in the future. Consequently, a code of conduct was drawn up, exported back to the United States, and became the backbone of IPOA when it was formally founded in 2001. Since then, IPOA has expanded to become an association of 60 companies worldwide and it does a mixture of advocacy work, education and research, and standards creation. The code of conduct continues to be central to the organization and the standards are taken very seriously.

> *"The code of conduct is the instrument of last resort... it is the responsibility of governments to properly regulate the industry."*

The Code of Conduct

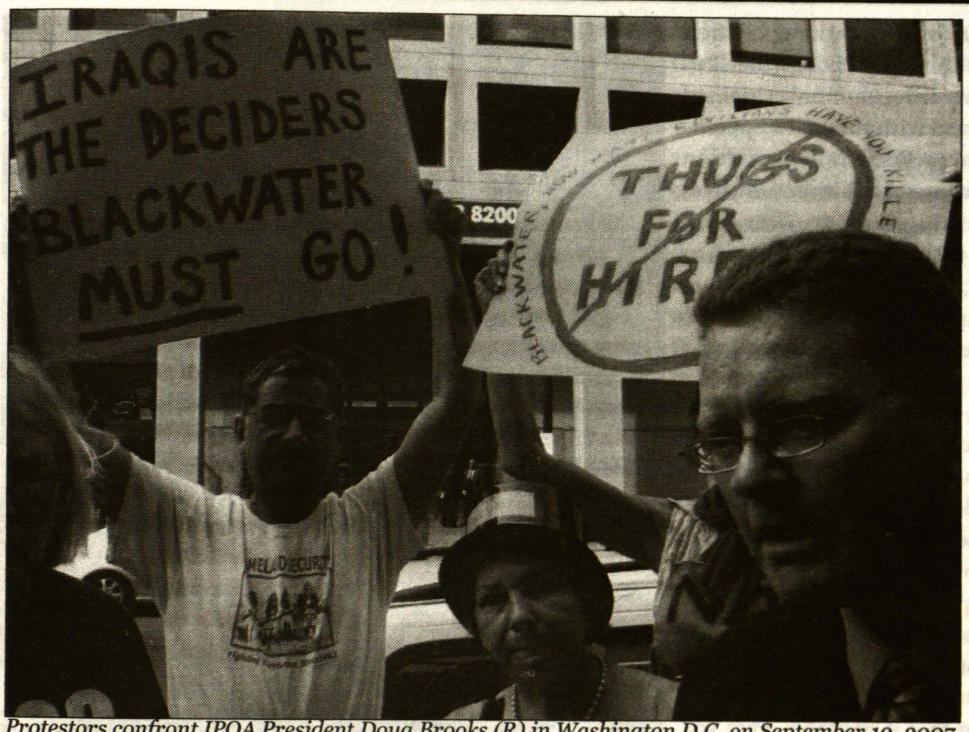
What are the key tenants of the IPOA Code of Conduct?

The code of conduct focuses on a lot of aspects of peace and stability operations that are relevant to companies operating in this environment. We look at issues such as human rights, labor, transparency, and accountability—issues that companies will often find themselves facing. We look at it much more in terms of ethics rather than regulation, because ultimately the code of conduct is the instrument of last resort. When all else fails, the code of conduct is there to be a net. It is the responsibility of governments to properly regulate the industry. The code of conduct is as an instrument of last resort, but is also as a booster for good companies. Companies can say that they are party to and abide by the code of conduct. We see that as distinguishing the quality companies from the rest of the field.

Yet, what incentives do companies have to follow the Code of Conduct if the standards are voluntary?

The incentives are largely unique to the industry because the industry is based on reputation. For example, if you were tasked with providing internal security for a humanitarian NGO and were looking to contract out security in a volatile area to a private companies, if that private company is a member of IPOA and subscribes to the IPOA code of conduct it is then much easier for the NGO to contract with that particular company. The director of the humanitarian NGO can be assured that the company has been vetted by its peers, is subject to review if something were to go wrong, and the company has made a public commitment to uphold IPOA's standards. When companies are able to differentiate themselves from the rest of the field, they have an economic advantage.

You mention the incentive for NGOs in their decision-making, but what of the federal government? According to the Center for Public Integrity, only 40% of contracts relating to the Iraq and Afghanistan conflicts were awarded on a competitive basis. Critics further point to the close ties



Protestors confront IPOA President Doug Brooks (R) in Washington D.C. on September 19, 2007. (codepinkhq/Flickr)

between companies and U.S. government officials, with people moving back and forth between the two sectors. How do you respond to this?

Let me first address the number of contracts that were not put out to bid. That is kind of misleading because if you look at the number of contracts that were awarded under LOGCAP (a logistics contracting vehicle begun under the Clinton administration), there are a number of tasks that the military wants to do on relatively short notice, and it is not necessarily practical to put out an RFP (Request for Proposal) for every single one of those tasks. Rather than putting every task out for bid individually, the military has put the entire contacting vehicle out for bid, and then the individual contacts under that would be self-sourced. If you are trying to argue that there is something wrong with the contracting system because only 40% of contracts are put out to bid, it is very convenient to say that all these contracts were not put out to bid. Of course they were not. They were awarded under a contract vehicle that itself was put out to bid. It is a little mischievous to claim that they were never put out to bid.

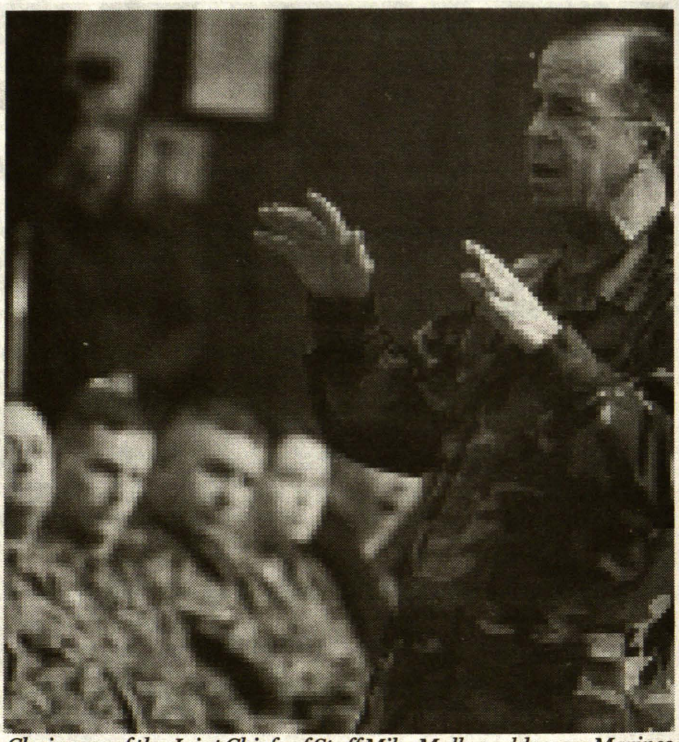
You see crossovers between government and private sector in just about every sector there is. I think it is a little rough to attribute that solely to the private security industry. You come to the question as to whether public-private crossovers are uniquely bad when it comes to this industry. There are a couple of reasons for it. If you are a highly trained individual with decades of experience who has been working for the armed forces, then chances are that you are going to have a mandatory retirement day. Then you might pursue other objectives and move to the private sector. We should not stop people from moving back to the private sector if they decide they want to serve their country a little bit longer. I think it would be difficult or problematic to stop people from doing that. The overlap between public and private is not necessarily a bad thing. There have been accusations that all these companies are run by Republicans and the contracts are only going to their cronies. If you look at the current administration, private contracting is just as widespread as it was before and, in many cases, it is even increasing. Look at Afghanistan, for example. As the United States military presence winds down in Iraq, chances are contracting is going to increase there as well. I think the argument that contracting is a partisan issue is starting to look a little weaker.

Yet how does the government ultimately decide who gets the contract? Companies with poor ethical standards may still do the job for cheaper, so how does the government negotiate between ethical and financial concerns?

That is problematic at the moment. Right now, there are a number of government agencies that are Congressionally mandated to choose the lowest price technically acceptable when hiring contractors. They will only choose the contract that has the lowest price and still barely meets the objectives of the contract. For example, if I was renovating a kitchen and I brought in bids for contractors, Contractor A can create a wonderful kitchen with the finest craftsmanship, but is somewhat more expensive that Contractor B which would put in cabinetry from IKEA. Contractor B can meet the objective, but the cabinetry will be quite a bit cheaper and the quality much poorer. What the government has gotten itself into is that they are not really too concerned about quality when awarding a contract. We have tried to demonstrate that that is not a necessarily good idea. That is not an indictment of the contractors themselves. They are trying to do the best job they possibly can. It is indictment of the philosophy underlying contracting.

Yet it is not just about the quality of the work (or kitchen cabinets). In its 2009 report on the IPOA code (the 12th report that it published), Amnesty International criticized the code as simply aspirational and without teeth. Specifically, they argued that the code lacked implementation guidelines, benchmarks for measuring achievement, systems of monitoring, public reporting, effective oversight, and enforcement. How do you respond to this claim?

First of all, I find it kind of remarkable that Amnesty International would release a report like this. I think the report was actually written by an intern, though I might be mistaken. We have included Amnesty as one of the key stakeholders in the past two to three revisions in the code of conduct. In fact, most of the revisions that were put into the code of conduct came from Amnesty International. I am thus a little disturbed that they would issue a report like that given the amount of access that they have had to the entire process. Just as we exist to improve the private sector's support of peace and stability operations, other organizations exist only to find fault. I am not necessarily leveling that accusation at any organization in particular, but I think that when your organizations modus operandi is only to find fault then that is probably what you are going to do. No one has ever made the claim that the code of conduct for the IPOA is perfect. It can always be improved and that is precisely why we have a review every two years and why we involve NGOs and other organizations like Amnesty.



Chairman of the Joint Chiefs of Staff Mike Mullen addresses Marines at Camp Lejeune, N.C., Dec. 7, 2009, prior to their deployment under President Obama's Afganistan troop surge. Messner argues that the numbers of private contractors in Afghanistan will continue to increase as well. (DoD/Chad McNeely/Flickr)

And what of enforcement? How does the IPOA conduct oversight?

We have standards of compliance procedure that allows anyone to make a claim against one of our companies and begin an investigation. It is basically a peer review of our companies. We have had a number of complaints by concerned individuals and organizations, where we have looked into our companies' procedures. I do need to be clear about this. We are not the court. We are not a body that is able to imprison or fine anyone. That is not our role. That is the role of government. Our role is to ensure that companies that are part of IPOA and use the IPOA logo are ethical companies. We are much more concerned about ensuring that their internal procedures and policies are acceptable to IPOA from an ethical point of view. If a complaint is made to us, sure we are concerned about the details of the individual complaint. But what we are more concerned with is what procedures and policies that company has in place to ensure that something like that never happens again.

Yet how much authority can the IPOA exercise over the companies that it represents? Until 2007, Blackwater USA was also one of the IPOA's members.

If you are an international court and investigating a country, if that country withdraws from the international treaty providing jurisdiction for the court, that is obviously going to undermine the credibility of the court. We cannot force anyone to remain a member of the IPOA. We hope that they would want to undergo that peer review. That was not the case with Blackwater. They left IPOA for their own reasons. Yet, if you look at the public reaction to Blackwater leaving IPOA, blogs and many commentators attributed Blackwater's departure to the IPOA investigation. It was almost as if the standards committee had found fault with their policies and procedures. Basically, the blogosphere convicted them in absentia. A company may leave IPOA (without any stated reason), but commentators in the blogosphere may still draw their own conclusions about it. You might argue that it is more beneficial for the company to continue with IPOA under those circumstances.

Has the standards committee found fault since?

The Standards Committee's decisions are not public. What I can say is that there have been a number of complaints made over time and the Standards Committee has reviewed those complaints.

United States Policy

Part of the IPOA's mission is government advocacy. What are the current U.S. laws governing private contractors and how does the IPOA evaluate them?

The problem is not so much the laws on the books as much as the execution of them. We have long supported MEJA because we believe that there is an obvious need for clear legal jurisdiction of contractors in conflict and post-conflict zones. We are also firmly of the belief that that space should not be occupied by a military court. The problem has not been the law. It is the enforcement and oversight of it. In recent times there has been a significant uptake in MEJA prosecutions. In the first 8 months of 2009 there were just as many MEJA prosecutions as in the preceding 8 years. It is not because contractors have been up to more mischief in 2009. Rather, it is demonstrative of the government placing more emphasis on the enforcement and oversight of MEJA. Previously, the enforcement structure was unwieldy. It was difficult for the government to carry out investigations because they were occurring in a conflict zone. A prosecutor had to go to Baghdad and investigate an alleged crime when the crime scene was perhaps two weeks old. There were often no witnesses, making the case very difficult to prosecute. The government has addressed many of those challenges, and that is why you have seen a significant uptake in the number of prosecutions. From that perspective, the government is starting to get enforcement and oversight right.

Has the IPOA made any substantive breakthroughs in their lobbying efforts in Congress?

IPOA has been quite active in its advocacy on the Hill in order to ensure that MEJA is properly enforced. In the end, its enforcement has benefits for the industry. If you do have contractors who individually commit crimes while they are traveling abroad on U.S. missions, it turns up on the front page of the New York Times and makes the industry look bad. If the public perceives that nothing is being done, then the fault is never laid at the foot of the government or investigating authorities. People will immediately think it is those terrible contractors. From the perception point of view, it makes a whole lot of sense for us to ensure that MEJA is robust and properly enforced.

You mentioned that contracting will likely increase in the coming years. There has been talk that the recent troop surge in Afghanistan will require more contractors to deploy as well, since new military bases and convoys will require protection. Has the IPOA taken measures to ensure that new contractors abide by the association's standards?

We can do so in so far as the government contracts with members of the IPOA. But those sorts of considerations are not always consistent. It has been our hope for some time that the government contract more with companies that subscribe to and abide by the IPOA code of conduct. We would argue that the government needs to give weight to those considerations. Beyond that, we have lobbied for third party certifications (present in this year's defense appropriations bill). The government made the commitment to contract with companies that are first certified by a third party as having met certain benchmarks and standards. That is hopefully a model that we will see the government move to in the future. Contractors are obviously a necessity in U.S. military operations. So far, the government has taken great advantage in utilizing contractors without accompanying this policy with sufficient oversight. I think this is where a lot of the problems have come from. Once oversight improves, I think you will see far less problems when it comes to contracting.

"Our role is to ensure that companies that are part of IPOA and use the IPOA logo are ethical companies."

Do you think the government should adopt the IPOA code of conduct as a mandatory system of contracting?

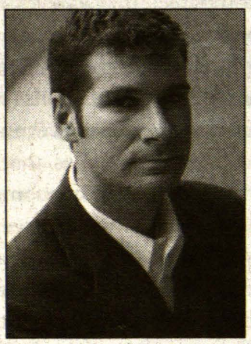
Absolutely. Ultimately, the clients are vast when it comes to contracting. Were the government to say that all contractors must abide by A, B, and C standards then all contractors would. If they did not abide by those standards, they would not get any work. It would make complete sense for a client to wish to do that. If we go back to the kitchen analogy, if I am deciding between two contractors to renovate my kitchen, I would want to make sure that the plumbers, and electricians are licensed. It is my privilege as a client to be able to do that and the contractors themselves know that they cannot operate without those certifications from the legal point of view and also because potential clients would be asking them those sort of questions. I do not think it is any different when you observe contracting in conflict and post-conflict environments.

Why do you think the government has not adopted these standards?

Maybe it is just an issue of time. Some of these standards are still evolving. If you look at the international norms at the moment, there are several agreements that are putting together an international code of conduct for PMCs. Obviously, these kinds of regulations are good for both the clients and the companies themselves.

The Regulation of New Warfare

Private Military Contracting Reform in the Twenty-First Century



By Peter W. Singer

Peter Warren Singer is Senior Fellow and Director of the 21st Century Defense Initiative at the Brookings Institute. He is the author of the award-winning book, Corporate Warriors: The Rise of the Private Military Industry and the recent best-seller, Wired for War. Singer served as coordinator of the Obama campaign's Defense Policy Task Force. He has served as a resource on the issue of private military contractors to the U.S. Congress, U.S. Department of Defense, Central Intelligence Agency, and the European Union, and helped bring to light the role of private contractors in the Abu Ghraib prison abuse scandal and the Halliburton contract controversies in Iraq.

Over the last several years, a drumbeat has grown louder that the problems emanating from the outsourcing trend in national security finally needs to be faced. Calls for action have been heard everywhere from congressional hearing rooms and the ivory tower of academia to presidential campaign stops and the battlefields of Iraq. The below lays out a series of long overdue action items that might be taken to launch a process of reform on the contracting of private military services, if these calls were serious and we actually wanted to fix the problems. The end goal of such a process would be to reign in negative sides of the culture of outsourcing that has taken hold in the Defense Department, particularly in contingency operations, while providing better oversight and management, designed to yield savings and conduct more effective operations.

Defining the Problem: Management, Oversight and Leadership Needed at the Highest Levels

We have an extensive and elaborate system in place to review the development and procurement of hardware (both in the Department of Defense (DoD) and on Capitol Hill). Yet, the scope of our defense purchasing has changed at its most fundamental level, from almost exclusively on goods to services. DoD spending on contracts in the last fiscal year was $316 billion, including roughly 20% of all Iraq related spending. That is, we now spend as much money buying services throughout the DoD as we do equipment.

> *"The number of contractors in the battlespace has grown enormously, as well as the scope of their activities."*

More broadly, the number of contractors in the battlespace has grown enormously, as well as the scope of their activities. During the first four years of the Iraq war, the U.S. government hired approximately 190,000 contracted personnel in direct service contracts there. This amount is greater than the total number of U.S. troops at the high point of "the surge" and is roughly 23 times the number of troops provided by our allies. To put this in a historical perspective, the ratio of uniformed military to contractors in the 1991 Gulf War was around 50:1. The contracting presence in Afghanistan is on a somewhat smaller scale, but reportedly rising to over 100,000 contractors in the last years, resulting in a 1:1 ratio.

The personnel in this "coalition of the billing" come from over 30 countries, with about a quarter American and the rest divided among third country nationals and local citizens. As many as a quarter are in armed roles in the battlespace, sometimes described as "private security" (but "security" clearly takes on a different meaning than private security at facilities not in active combat zones). The others handle roles that range from logistics to Unmanned Aerial Vehicle (UAV) services to staffing out military advisory teams. It is important to note, however, that these numbers and roles remain in great dispute. For example, while one study reported that there were as few as 10,300 total contractors in armed security roles in Iraq, the Ugandan Ministry of Labor reported in 2008 that there were 9,000 Ugandans alone working in that role in Iraq.

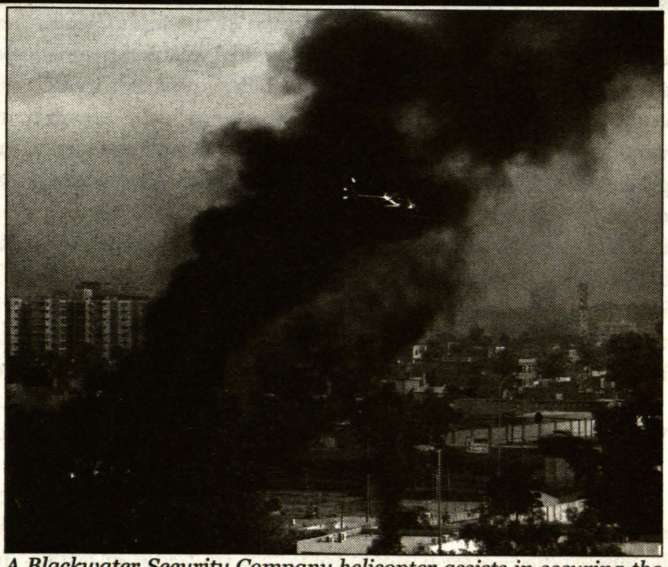
This system of outsourcing has greatly benefited our military operations in many respects, providing an abundance of support (arguably the US mission in Iraq is now among the best supplied and equipped in history), while avoiding added pressures on the active and reserve forces that would occur if there was not so much contracting. Additionally, the ad hoc manner in which this system has grown and the lack of an overall DoD strategy concerning contracting missions has incurred great costs. The Pentagon estimates that as much as $10 billion dollars have gone missing or been misspent by private military contractors in Iraq. Literally thousands of weapons have similarly disappeared in Iraq and Afghanistan, with some even ending up in the hands of local insurgents or transnational terrorist groups. As many as 15 or more U.S. troops have died inside U.S. bases as a result of shoddy electrical work performed or imporperly

supervised by logistics contractors. And, at the strategic level, contractors were involved in many of the most egregious and embarrassing incidents in the war, including Abu Ghraib and the Nisour Square shootings in Sept. 2007. These incidents matter not only because of the consequent embarrassment to the nation, but also because many military officers believe private contractors have undermined our counterinsurgency goals, reflecting negatively upon U.S. grand strategy across in the region.

In management terms, the military contracting of services has risen at such a rate that the system of oversight and supervision has become wholly inadequate. Moreover, at a time of unprecedented growth in contracting services (as much as 700%), the Pentagon workforce responsible for this role has shrunk (by about 25%). The result is that in 1997 one DoD auditor was responsible for $642 million in private contracts; today it is one for every $2.02 billion in contracts. Contracting officers in the field similarly describe being far too busy in signing new contracts to go back and review performance of ongoing contracts. It is not surprising then that at many of the incidents where contracts turned sour (such as the electrocutions or Abu Gharib), no government contracting officer was even present on site, simply to be made aware of the situation and potentially intervene to stop it. Without change, this situation is only going to get worse, as more than half of all contract auditors are expected to retire within the next 10 years, meaning the Pentagon will soon have even less officers with experience.

At the core of this issue is a more fundamental question: What tasks are appropriate to outsource in the first place? The DoD has never really come to grips with meaningfully defining what are "inherently governmental" functions in light of new market and political realities. Private military firms today can provide almost any military service or function, from strategic leadership to piloting jet fighters to cooking. The core question is for what areas they should? The term "inherently governmental" is used some 15 times in U.S. code and appears in over 120 pages of DoD documents, but remains misunderstood and often ignored when it comes to actual contracting in the field. This is how, for instance, a company ended up providing private military interrogators at Abu Ghraib, using an IT services contract written in 1998 as the point of origin.

More broadly, it is becoming clear that a sort of dependency syndrome has set in, where the Pentagon cannot carry out many of its most basic public responsibilities without firms. To be blunt, the reliance on contracting is far more than DoD senior leadership is willing to admit. Arguably, across the entire Department--in the absence of contractors--we might, for example, have great difficulty supporting operations in Iraq, Afghanistan, and elsewhere. This includes basic tasks like convoy movement, provision of critical supplies (e.g. food, fuel, and ammunition), and also such roles as running the very Office of the Secretary of Defense and the Joint Staff. Vari-



A Blackwater Security Company helicopter assists in securing the site of a car explosion in Baghdad in December 2004. Despite recent incidents involving PMCs, companies like Blackwater (currently known as Xe Services LLC) have helped make the U.S. mission in Iraq among the best supplied in history. (MSGT Michael E. Best/ wikicommons)

Given the present circumstances of manpower, contractor support services provide flexibility in the workforce. Thus, a thorough analysis is necessary before the DoD considers divesting itself of these capabilities and expertise – particularly in a time of war. Senior leadership should order a rigorous, comprehensive review of what services we are procuring throughout the DoD, and to what extent we are dependent upon them. Such a review would examine DoD interactions with contractors, the current numbers of hired contractor personnel (both U.S. citizen and foreign), the number of auditors/contracting officers supervising contracts, the percentage of contracts that are no-bid or sole source, as well as functions outsourced for which there is a monopoly in the marketplace, and the exact capabilities that are being provided from private sources. Such inappropriate roles may include having contractors in legal or contractual oversight roles, roles that relate to the use of force, or roles that relate to other core military functions.

Rebuild the Ability of Government to Oversee and Manage

Secondly, senior leadership must set a goal of reconstituting a DoD-wide, rigorous contract management system that establishes checks and balances to create an incentivized system of accountability. Such a government management system would define clear performance metrics for private military providers, uniformly enforce performance standards, reduce reliance on no-bid or sole source contracts, and ensure an active marketplace for any and every outsourced function. Most importantly a comprehensive DoD management system would move contractors out of roles that are deemed inappropriate for private outsourcing.

On the uniformed side, the Chairman of the Joint Chiefs and combatant commanders should be tasked with designating a senior officer, whose primary responsibility is military service contracting. Beyond supporting the above goals, the officer would be responsible for ensuring that contracting was integrated into all deliberate and contingency plans as a separate contracting annex, the exact opposite of the ad-hoc manner in which contracting emerged in the first years of operations in the Balkans and then Iraq and Afghanistan. Such inclusion in the planning machinery will force many tough questions to be answered before rather than after deployment, as has been the case more recently.

Work with Other Agencies to Fill Policy Gaps

The irony of the private military contracting issue is that many of the toughest problems and needed solutions actually lie outside the Pentagon. For example, the shootings of civilians like at the Nisour Square may have had an immense effect on U.S. military counter-insurgency operations in Iraq, but the personnel involved were State Department contractors. Thus, they did not fall under either military contractual control, nor the chain of command, nor arguably military law. The private contractors' amorphous status has thus been used to muddy the water of any potential prosecution and stymie cooperation with on-scene force commanders.

The U.S. State Department's close relationship with private contractors extends to security at the U.S. Embassy in Baghdad. According to Singer, this relationship makes defining the legal and international status of PMCs in battle zones difficult and necessitates the formation of international standards and norms for the use of security forces. (jamesdale10/ wikicommons)

Working with the Department of Justice, the DoD should make clear that it supports (1) the use of qui tam lawsuits to inculcate a culture of accountability (Note: The DoJ has yet to utilize this legal option that was effective in deterring fraud and recouping losses in past wars, thus not incentivizing whistle blowing or creating positive financial returns) and (2) greater prosecution of civilian contractors who commit crimes in warzones.

Working with the State Department, the DoD should make clear that its concerns over the use of armed contractors are not merely concerns over "coordination," as it is usually described in public statements and congressional testimony. The lack of "coordination" prior to the Nisour Square shootings was certainly a vexing concern for military officers in the field, but it was not a cause of the shootings. Thus, any remedy that only focuses on coordination, as has been the case so far, is insufficient. DoD should also work with State on identifying measures where the US can lead multilateral efforts to establish standards and norms in international public law regarding the private military industry. Such efforts would move the U.S. into a pro-active role on an issue of global strategic importance.

Reach out to Congress

In many areas, only legislation can firmly re-establish the once clear line between where public authority ends and private initiative begins. Therefore, the Executive Branch must work with Congress to improve the laws that govern contracting with private military companies.

At a minimum, DoD should develop a dialogue with Congress to develop a sense of what activities must not be outsourced and therefore demand a "resident capacity" within either the active duty, National Guard, Reserve or DoD civilian workforce. This designation will give political top-cover as well as force Congress to wrestle with resourcing issues that might be associated with any policy changes. Most importantly, it would break the cycle that DoD now finds itself in of Congress picking and choosing specific contracts that it believes are inappropriate in mid-stream and demanding immediate action to end it.

Second, senior officials at DoD should encourage Congress to pass legislation on MEJA to cover contractors not currently under the Uniform Code of Military Justice. The MEJA Expansion and Enforcement Act of 2007, which has been passed by the House but not by the Senate, sought to provide legal accountability for private contractors employed by the State Department. This gap is still a hazy one in how it is to be implemented, not only on the case of State Department contractors, but also if the contractors are third country nationals or subcontractors. The Congress should also act to specify the exact boundaries between UCMJ and an enhanced MEJA, making the logical decision that actions in the midst of battle should be judged by a military court, while those off the battlefield with a civilian law equivalent should be judged by a civilian court.

Send Proper Market Signals

The marketplace is a reactive entity. Guided by clients that know their own goals and deliver proper incentives to meet them, it will deliver optimal returns. When clients are unclear with their vendors, lack coordination and oversight in the meeting of their goals, and fail to provide both positive and negative incentives, the market will offer sub-optimal results. Firms prefer the clarity of the former situation, as it offers them the most sustainable business model. That is, the industry will not resist improved Pentagon oversight and management as much as some might think and in many cases will greatly welcome it.

On the positive side of signals, each governmental department working with private contractors should establish a regularized chain of communication with military service companies. This channel would be separate from individual contract talks or reviews but instead take on a more industry-wide perspective. The goals of this channel would be to create a process at which the parties can raise priorities, discuss lessons learned, and share ideas on the best means to incentivize positive results in current and future contracting, from both the public and private perspective.

Among the areas that should be initially raised at the agenda of such meetings include questions on 1) what measures can be written into contract to create a more desirable reward structure, as well as 2) how the industry itself can self-police any systemic abuses, 3) develop high practices and training standards, and 4) commit to increased transparency. The military services industry currently is trending towards establishing a "code of conduct," which is a positive sign of its eagerness to problem-solve. Moreover, industry leaders want to establish a long-term structure that rewards firms that meet the shared goals of professionalism and efficiency.

But that effort is nascent and the interface with DoD is marginal. Most importantly, the code involves no accountability measures yet. In actuality it is a voluntary guideline rather than a code. It doesn't reward firms that follow it nor punish those that do not. DoD can work with the industry to make this effort more effective by identifying areas of enhancement, as well as ways that the DoD (as the most powerful client in the field) can support these reform efforts. For example, these standards might be enhanced to include such requirements that all contractors deploying into an operational zone be trained in the laws of war as well as human rights law, and not simply in the rules of engagement for a particular theater of operations. While many firms already voluntarily take this step, the DoD could mandate the minimal training criteria into all its contracts to give the standard actual market weight. Similarly, it should also explore vetting procedures regarding third-country and local-country nationals to ensure that those with criminal pasts (and particularly those guilty of human rights abuses) are prevented from serving as U. S. government-funded contractors.

It is important, however, to recognize that a structure of only positive incentives ignores the basic lessons of economics. While rewarding exemplary firms, the DoD must also do a far better job at creating accountability for those rare firms that are the opposite. It must not only think of this in raw financial terms (i.e., streamlining the monetary fine and contract termination process for firms that underperform or are found to have engaged in any contract overbilling or fraud), but also do its utmost to eschew "cowboys" and others who damage the nation's –and industry's-- reputation.

To demonstrate its earnestness in creating a new culture of accountability, each service point of contact should also be asked to create a reporting mechanism to identify any firm that has embarrassed the U.S. (e.g. activities either authorized or not that have caused a severe setback in the campaign to win 'hearts and minds' and/or damaged US image abroad). They should also enact measures to write this new standard into existing and future contracts as a cause for termination. The standard should be kept flexible but high in its definition. Importantly, it is the very act of this designation that will incentivize better employee oversight within the industry (that is, firms will then restructure their own employee contracts and enhance their internal screening measures) as well as send a positive signal to partner states and allies that the U.S. is taking responsibility for bringing its own outsourcing problem area into order. In the end, all of these steps rely on one critical assumption: that we have the political will to face this problem area directly. Unfortunately, after over 10 years of researching the private military industry and working with almost every government agency and branch on various aspects of their relationship with it, I remain unconvinced that we actually do.

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Reining Privatized Power

An Interview with Laura Dickinson

Conducted by Matthew Williams

Laura Dickinson is the Foundation Professor of Law at the Arizona State University Sandra Day O'Connor College of Law. She serves also as the Faculty Director of the Center for Law and Global Affairs. Prior to her appointment to ASU, Professor Dickinson was on the faculty at the University of Connecticut School of Law from 2001 to 2008. She served as a Visiting Research Scholar at the Law and Public Affairs Program at Princeton University in 2006-2007. Her forthcoming book, Outsourcing War and Peace is to be published by Yale University Press.

You have recently finished Outsourcing War and Peace, which "examines the increasing privatization of military, security, and foreign aid functions of government, considers the impact of this trend on core public values, and outlines mechanism for protecting these values in an era of privatization." Could you briefly discuss your main argument and observations in this forthcoming book?

In the book, I examine the progressive shift in how we project our power overseas through the use of private contractors. For example, we are now using more contractors than troops in Afghanistan and Iraq. The contractors are doing everything from logistics work, to delivering foreign aid, to guarding diplomats and sites, to conducting interrogation. This is a huge shift in the way we project our power overseas. The starting point for my book is the proposition that this shift poses quite a significant risk to what I call "public law values" – the values embedded in international human rights law, those embedded in international humanitarian law, and other values, such as public participation and transparency. For example, one core value embedded in international humanitarian law is the principle that the use of force is limited in times of armed conflict.

> ***"Outsourcing threatens transparency because when you delegate governmental action...to contractors, it is very difficult to have a public debate about what is going on."***

Outsourcing poses serious risks to these values, and there have been many reports in the media which illustrate these risks. The high profile incident involving the Blackwater security guards who fired on civilians in Baghdad's Nisoor Square is one well-known incident, but there are many others. For the book, I interviewed former military lawyers who served in Iraq and Afghanistan, and a number of them said there were as many as two incidents a week involving excessive use by contractors.

The book examines the nature of these risks and also proposes ways that we can try to protect public values in an era of privatization. The starting point of my argument is that that privatization is here to stay. I think that in the near to medium-term, we are only going to see the government using more and more more contractors. Rather than arguing against this shift, I contend that we ought to take steps to protect public values in this radically different world. To that end, I examine litigation and legislation as well as the terms of the contracts themselves, and I suggest reforms that might better protect public values. I look at mechanisms to promote public participation and transparency. And finally I look at organizational culture: is there a way we might foster a professional culture within these private firms that better promotes the values we care about. Is there a way that we can harness the gains in the military and extend the role of the oversight to private firms?

You believe that civil society in the United States holds these public values to high standards in most cases. Could you expand on these values and explain what role the use of private contractors has in changing or threatening these values?

I focus on values embedded in international human rights law, those contained within the law of armed conflict, and other values, such as public participation: the idea that our government is transparent. I show that outsourcing threatens transparency because when you delegate governmental action to

agencies, and those agencies then delegate again to contractors, it is very difficult to have a public debate about what is going on. The contractors need not obey the same transparency laws that government agencies must follow. The same rules do not always apply to them because they are private companies. This adds, in a sense, another layer of bureaucracy.

There was a hearing a couple weeks ago in which the Defense Department could not give a complete tally of the number of contractors acting in Iraq and Afghanistan. There are so many different databases, and State Department contractors, for example, are not all entered into the Defense Department database. As a result, we cannot even say exactly how many contractors there are, let alone keep track of what they're doing. Agencies struggle to hire personnel to monitor the contractors in Iraq and Afghanistan, and those who do take the job are typically shuffled through positions within six months or so, and have very little knowledge of what they are supervising. We have cut way back on the number of contract oversight personnel, and that impedes our ability even to obtain basic facts about what the contractors are doing, let alone assess their effectiveness or ensure that they respect human rights principles.

Some people will argue that privatization of foreign policy should have limits. As a legal professional, what limits do you believe the government should impose on itself when it comes to private contractors? Has the government already overstepped this boundary?

Under current policy, the Defense Department does not allow the outsourcing of combat activities, and I believe this is a sensible limit. However, we allow contractors to engage in activities that come awfully close to combat. Many critics argue that we should eliminate all categories of contractors who are authorized to use force, such as security contractors or interrogators. I think that there is a strong case to be made for abolition in these cases because the risks of abuse are high. On the other hand, the reality is that we are so dependent on these types of contractors that it would be difficult to eliminate them.

During her presidential campaign, Senator Hillary Clinton cosponsored legislation that would have eliminated security contractors, yet she backed off from that position when she became Secretary of State. She expressed concern about the use of security contractors but acknowledged that it was not feasible to eliminate them. I suspect she concluded that the Department needs their protection. This example shows how difficult it is, given how far we have come, to eliminate whole categories of contractors. Rather than seeking abolition, I think a better response is to achieve stricter regulation. But perhaps most importantly, we should continue to have a debate about which types of contracts might be eliminated in the long run.

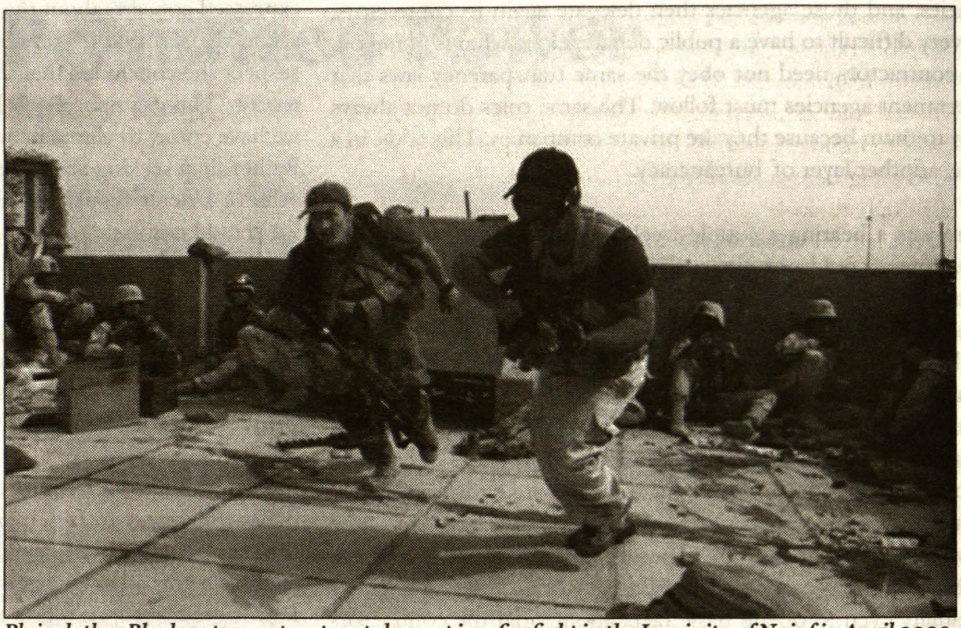
What is the accountability framework if a contractor commits an abuse? Are contractors able to act differently than government forces? Is there any legal backing that protects their operations in a warzone?

Media accounts often depict contractors as operating in a sort of law free zone. In fact, there are many laws--both international and domestic--that apply to contractors. Although these laws have grey areas and gaps that should be filled, perhaps a more significant issue is how the law is enforced. For example what happens when a security contractor uses excessive force and kills someone, as many commentators assert took place in September of 2007 when Blackwater guards fired into a crowd in Baghdad's Nisoor square? What we have seen is that troops who use excessive force are punished, but contractors who use excessive force typically do not face trial.

Under the Military Extraterritorial Jurisdiction Act (MEJA),

A private military contractor gestures to colleagues flying in a helicopter in Baghdad, Iraq in July 2005. Dickinson believes that the U.S. government's increasing use of private contractors suggests that seeking the abolition of private companies in foreign warzones may prove impossible. (NewtypeBlog/Flickr)

our federal courts have the power to consider cases involving contractors employed by the U.S. government who commit federal crimes (e.g. murder or assault) in foreign countries. The statute is worded in such a way that it covers contractors that are supporting a Department of Defense mission. The Blackwater contractors were working for the State Department. Would they be covered under the Act? It is an open question: the State Department and the Bush administration initially took the position that these contractors would not fall within the statute. Yet, you could make an argument that they are covered. Although they were working for the State Department, they are more widely supporting a Department of Defense mission. Ultimately they were indicted, though the federal district court has now thrown out the indictments for other reasons. In any event, the scope of MEJA is a question the courts will have to answer at some point.



Plainclothes Blackwater contractors take part in a firefight in the Iraqi city of Najaf in April 2009. Dickinson states that the U.S. government's increasing dependence on private contractors may gradually undermine the U.S. mission to uphold certain public values in foreign affairs. This task may become especially difficult when private contractors commit abuses. (NewtypeBlog/Flickr)

A bill that passed in the House but stalled in the Senate would have closed this gap in wording and resolved all ambiguity, giving federal courts jurisdiction over contractors working for any agency overseas. But I would contend that even more than closing that gap, we need to reform our system of enforcement. It took two weeks for FBI investigators to get to Iraq to investigate the Nisoor Square shootings. We ought to require that investigators get to the scene in a timely manner. Another issue is that the responsibility to bring these cases has fallen on the lawyers in the U.S. attorney offices spread around the country. They do not necessarily have expertise in these areas or the incentive to bring these cases. They are difficult cases, as you can imagine. We need to centralize enforcement in the Department of Justice and build up a cadre of lawyers whose main job is to bring these kinds of cases.

Blackwater has served as a high profile case in which the U.S. federal courts have taken on the role of prosecution. What other methods of prosecution exist and to what extent can they be utilized?

Contractors could be potentially prosecuted in international courts, although there are no international courts that have jurisdiction. If contractors use excessive force during armed conflict, they could be prosecuted for war crimes. The same would be true if contractors tortured detainees. There is some precedent for the prosecution of non-state actors for war crimes and crimes against humanity at Nuremberg and in the International Criminal Tribunal for the Former Yugoslavia. Contractors could also be prosecuted in the host country. For a while, Coalition Provisional Authority Order 17 granted contractors immunity from prosecution in Iraq. That order is no longer in effect. But the problem with criminal prosecution in Iraq and other countries where abuses might take place is that the courts are not really in position to handle these cases.

The United States has not always been so dependent on private contractors to execute foreign policy and military goals. What is driving the heightened use of military contractors?

First, I should day there has been a significant shift if you compare the use of contractors today to the use of contractors thirty, forty, or fifty years ago, but if you go back even further in our history we did use contractors in many ways. What is causing this modern shift? One of the main factors is what I call the ideology of privatization, the idea that the private sector can do the government's work better, more cheaply, and more efficiently. The privatization of our foreign affairs function is an outgrowth of the privatization of our domestic governance functions.

In the 80s and 90s we saw a huge shift in how we provide a whole range of services from education, to healthcare, to prison management. We saw a shift on the part of governmental entities including state and local governments from public employment to the use of private contractors, and we had a big debate about that. The ideology that was driving that debate drove the outsourcing of foreign policy actions in the late 90s and the beginning of the 2000s. I use the term ideology because, particularly in the foreign policy context, it was an idea that had no data to support it. It may or may not be cheaper to outsource military and security functions. We just do not have the data. But it was politically much easier to justify adding contract labor positions than adding governmental employee positions. And this happened incrementally in thousands of small budget decisions, almost under the radar screen. While we had a big public debate about the outsourcing of domestic governance functions, we never really had a public debate about the outsourcing of foreign affairs functions. And now we find ourselves in a radically different world.

"We never really had a public debate about the outsourcing of foreign affairs functions. And now we find ourselves in a radically different world."

There were a other factors too. The use of contractors reduces the political costs of war because when contractors are killed (more than a thousand have died in Iraq and Afghanistan), the tally is not included in the number of troops killed. Likely for this reason, the number of contractors grew dramatically during the conflict in Kosovo (under President Clinton). It fit in with the strategy of using air warfare--instead of using troops on the ground--in order to reduce casualty counts. This trend has continued in the conflict in Iraq and Afghanistan under President George W. Bush and as well as President Obama's administration.

Following the Nisoor shooting in 2007 involving Blackwater security guards firing on civilians, the company and private contractors in general have received criticism. How does this impact perceptions of the United States and our foreign policy objectives?

I think it has certainly had an impact on our relationship with Iraq. The incident involving Blackwater has been a great source of concern within Iraq. And many of our own troops and the uniformed military lawyers I have interviewed said the lack of accountability for contractors jeopardizes our ability to promote the rule of law in Iraq and stable governance. More broadly, the lack of accountability when contractors commit abuses--not the use of contractors per se--threatens to harm our reputation and interfere with our foreign policy objectives. It undermines the image of the United States as a nation that respects certain values. To the extent that we care about those values, and that we pursue a values-based foreign policy, a failure to hold contractors accountable for wrongs they commit can undermine our goals.

In the future, what steps should the United States take to remedy issues regarding accountability and regulation of contractors?

We need to have broader public debate. Part of the problem is that so much of this has happened under the radar screen. We are starting to have a little bit more of a public conversation about foreign policy contractors, but people do not fully realize the significance of the changes that have taken place. I think part of the debate is whether or not we should be doing this at all. Yet now that we are so far down this path, we also need to focus on regulating contractors, holding them accountable, and ensuring sufficient oversight. If we get hung up on trying to figure out which type we should ban, the train will not only be moving down the track, it will be off on another planet. We cannot waste any time. I think it is a concern that some good bills have stalled in Congress. I know the administration is coping with a log of issues, from the financial crisis to health care reform. Still, we should make the regulation of military and security contractors a higher priority issue.

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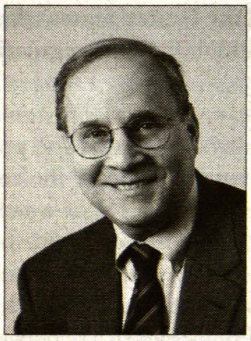
Bringing Blackwater to Trial

An Interview With Eugene Fidell



Conducted By Mathew Andrews

Eugene R. Fidell is a Senior Research Scholar in Law and the Florence Rogatz Lecturer in Law at Yale Law School. He is president of the National Institute of Military Justice and of counsel at Feldesman Tucker Leifer Fidell LLP, Washington, D.C. He is a co-author of Military Justice: Cases and Materials, a Fellow of the American Bar Foundation, a Life Member of the American Law Institute, and a member of the ABA Task Force on Treatment of Enemy Combatants and the board of directors of the International Society for Military Law and the Law of War.

The current lawsuits against Blackwater are groundbreaking in that they are the first time that a private military contractor is being held criminally liable for extraterritorial crimes committed in the course of a government contract. Can you provide some background about the Nisour Square incident?

There was a convoy of vehicles that included security provided by Blackwater, now known as Xe. Blackwater was hired by the Department of State to provide security--a function ordinarily provided by marine guards. Apparently the State Department has moved away from that. I am not sure where the convoy was going from or to, but when they reached a major traffic circle, a major fusillade occurred. The facts are in dispute. There was a lot of fire by some of the Blackwater personnel in the convoy. Whether their fire was in response to shooting by others is unclear. As well, whether it was initiated by Blackwater remains open to question.

> *"It is a case in which the Iraqis had every reason to expect would at least end up in trial. These gentlemen will not go to trial."*

A number of Iraqis died as a result and, needless to say, it engendered enormous public interest in Iraq. Things thus got very hot for Blackwater in the United States. A major investigation ensued, the first stage of which was conducted by Department Security. Department Security is the internal affairs unit of the Department of State: they are law enforcement personnel, carry badges, and are armed (at least at times). In the course of that investigation, statements were taken by Department Security personnel from Blackwater personnel, under the understanding that they would not be used against the Blackwater personnel. That understanding was not arrived at with the approval of the Department of Justice. Because of the circumstances under which those statements were taken, the Department of Justice grew very concerned that the statements themselves and the fruits of those statements--the evidence obtained as a result of those statements--would be subject to suppression. Suppression from the standpoint of not being admissible as evidence in federal district court.

There are at least two lawsuits filed against Blackwater USA: one sponsored by the Center for Constitutional Rights under the Alien Tort Claims Act on Oct. 11, 2007 and another by the Justice Department. What is the legal basis for each suit?

The criminal case is a prosecution for murder, as I understand it. The civil case--I do not recall its cause of action--seeks damages rather than a criminal conviction. They thus proceed differently. The civil case has resulted in a settlement, though there is some controversy as to whether the settlement should be given effect.

You mention that there is controversy over the settlement in the civil case. How so?

It is not that uncommon for litigants in civil cases to have buyer's remorse in the weeks after settling a case. They may talk to friends or family and come away thinking that they could have done better in the negotiations. That, I actually think, is quite common. However, it is less common for litigants to actually try to unravel a settlement and walk away from it. You can do that if you can show that the settlement was obtained by fraud

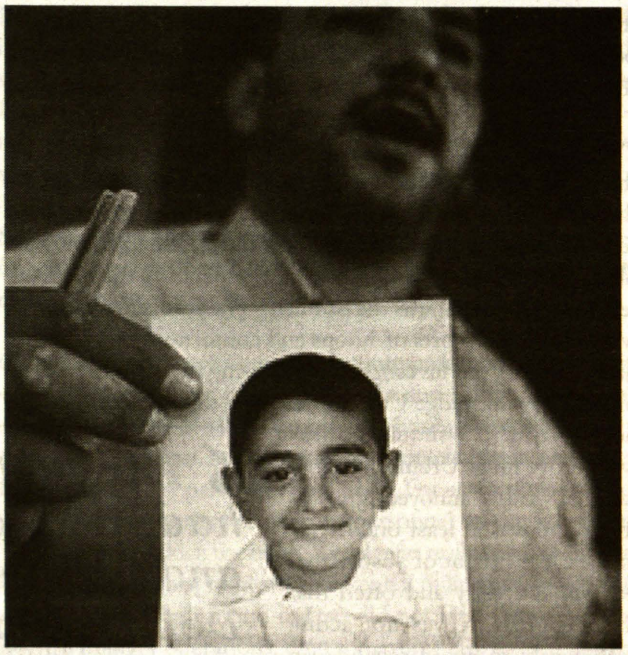
or by the influence of duress. Whether the Iraqi plaintiffs are going to be able to sustain that argument is a very open question. It is not easy to unravel a settlement. For good reason. It is very human for people to say, "Gee, I wish I held out longer and got more money." There are, however, a number of issues to consider. Was this a knowing act on the part of the plaintiffs who settled? Were they properly informed of the content of documents that might not have been in their own language? Were they given translations either orally or in writing? Were they told other things that were not in the settlement documents that might have influenced them? If so, is evidence of those other things visible? There are some questions of contract law that could bare on that. It is possible that false statements were fraudulently made to make the plaintiffs consent to these settlements. Stranger things have happened. Whether that in fact happened here, I cannot say. But there could be an evidentiary hearing and people would have to take the stand. Those individuals might even have come to the United States or have their depositions taken in Iraq to make their case. I think they would have a heavy burden of proof to carry.

The Los Angeles Times reported on January 11th that several victims of the Nisour Square shooting "were pressured by their own attorneys into accepting what they now believe are inadequate settlements." What do you make of these claims?

The plaintiffs that settled now claim that the settlement was a result of a representation that Blackwater would go belly up if they sued. The plaintiffs would thus get nothing because Blackwater would be underwater. If someone said something like that to the plaintiffs with the purpose of inducing them to sign a settlement, there would be a substantial question over whether that was a statement of fact or simply an opinion. If it was an opinion, whether it was colorable or complete hogwash. I don't know about enough about the business of Blackwater -- other than that they're been in the news a lot these days -- in order to say whether that statement is true or not.

In a world in which they were to prove that evidentiary burden, would winning a civil case in court establish a meaningful precedent?

It could potentially. It would not directly help other litigants, but it could help point the course of the law in a particular direction. If they are able to unravel the settlement, the parties will be back at the negotiating table and they may or may not be able to reach an agreement. If there is an agreement, I can assure you that this one will be on videotape to guarantee that the same thing does not happen again. However, if the parties are unable to reach an agreement, the plaintiffs are going to have to insist on a hearing. Whether they are going to prevail is anybody's guess. They might, but I cannot guarantee that.



Mohammed Hafiz holds a picture of his 10-year-old son, Ali Mohammed, who was killed in the Nisour Square shooting. Fidell argues that while the facts of the shooting are in dispute, early investigation by the State Department botched future attempts by the Justice Department to bring the Blackwater personnel to trial. (Gorillas Guides/Flickr)

Current Criminal Litigation

Lawyers for Blackwater have repeatedly argued that United States statutes do not apply to the Blackwater personnel working for the State Department. Is there a legal basis for bringing criminal charges?

The case was subject to prosecution, theoretically, in a federal court because of a statute that brings into federal criminal jurisdiction certain kinds of misconduct committed overseas by certain government contractors: the Military Extraterritoriality Justice Act (MEJA). There is a substantial question, in my mind, as to whether this prosecution was doomed to begin with. The Blackwater employees quite possibly do not fall under the statute under which they are being prosecuted. It is a very technical question as to whether work performed under a contract issued by the Department of State is work in support of the Department of Defense. That is it in a nutshell--I don't have the statute right in front of me. It involves construing the terms of the statute, and my recollection is that it is at least fairly arguable that this contract does not fall under the statute. That has not been fully addressed yet. Congress was not perfect--I know this is surprising--and they probably did not anticipate this kind of situation.

On December 31, Judge Ricardo M. Urbina dismissed

the indictments against the five Blackwater defendants because of the Justice Department's "reckless violation of the defendants' constitutional rights." What happened?

The problem was that despite its efforts, which were substantial, the Justice Department did not achieve perfect cleanliness in the preparation of its case. This was in terms of avoiding any reliance (no matter how indirect) on the statements that were obtained by Department Security personnel from the Blackwater employees. That was the problem. The Justice Department went through all sorts of hoops and contortions--I think they had to restart the investigation and bring in a whole new set of lawyers--but Judge Urbina still found that their efforts had not succeeded. I should not say what drove Judge Urbina crazy, but what obviously annoyed him was that there was at least one lawyer in the Department of Justice that had spoken early and often that the Department was not acting sufficiently to avoid reliance on this evidence. It was the disregard of that lawyer's warnings that caused Judge Urbina to be as irate as he was.

> *"The fact that there had been questioning and promises made by Department Security was a red flag early, early on."*

So does the Department of Justice appeal?

Vice President Biden announced during his recent trip to Baghdad that the Department will be appealing the case. The longer I practice, the less confident I feel in my ability to predict outcomes. However, I believe that it is unlikely that Judge Urbina's decision will be overturned. His decision is about 90 pages long and is a very carefully done piece of work. It would be quite difficult, I think, to get it overturned. Unless they overturn it, the case is finished. Well, criminally finished.

What is the process of appealing the decision?

The case would go to the U.S. Court of Appeals for the District of Columbia. The Department of Justice either already has or will soon file a notice of the appeal. There will be briefs filed by both sides. The case will almost certainly be argued before a panel of three judges. Depending on the outcome, either party could ask for a rehearing before the full Court of Appeals and, potentially, the case could be heard before the Supreme Court. Given the case, I do not know whether or not it will be worthy of certiorari. I think it will probably end with the D.C. Circuit. If the government lost, it might feel the need to try to get the Supreme Court to hear it. Not because they think they have a good shot of the Court granting certiorari, but because they need to do it for political reasons. It would demonstrate to the Iraqis that the administrative has done its best to overturn Judge Urbina's decision. It would signal that they were devastated by the outcome but that they spared no effort.

What does that mean for the lone Blackwater employee that has already pleaded guilty and is presumably cooperating with the Department of Justice?

I think he will try to withdraw his plea. There is a certain unjust aspect to it. He presumably pleaded because he was cooperating with the authorities. It would be truly ironic if the one cooperating with the authorities was the only one to go to the slammer. I do not know the precise rules about when you can withdraw your plea, but the request would first go to Judge Urbina, and I would think that he would be sympathetic. What he might do is hold such a motion in advance of the D.C. Circuit decision.

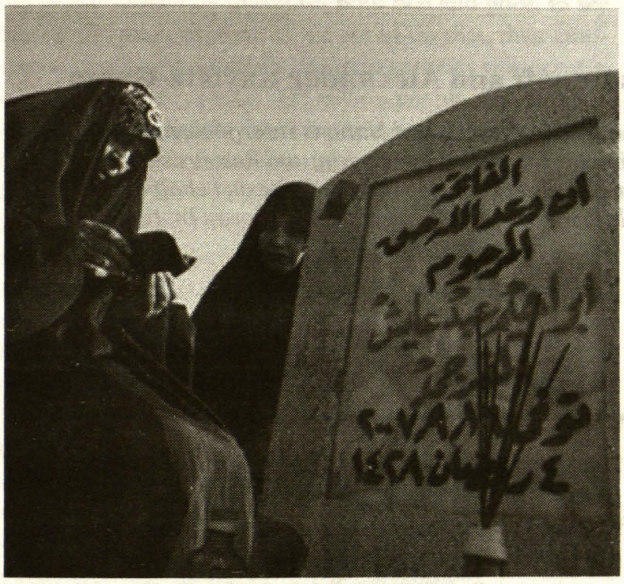
Are there other avenues that the Department of Justice could pursue?

One question is whether the agreement we had with Iraq about the status of our forces would permit the Iraqi courts to prosecute the Blackwater personnel. I believe that is not in the cards. I also assume that Blackwater personnel are no longer in Iraq. So that is not going to go anywhere. I also, personally, have great doubts about whether the personnel could get a fair trial in Iraq. Unfortunately, I think that despite the efforts made by the Iraqi government to develop its justice system, it does not approach ours in terms of its fairness and transparency.

I had thought about the possibility of the Blackwater guards being prosecuted in federal court by military court martial, because the Uniform Code of Military Justice does state that persons serving for or accompanying the Armed Forces during a time of declared war--which this is not--or a contingency operation--which this is--can be prosecuted by a court martial. Whether these Blackwater personnel would be treated as serving with or accompanying an Armed Force is, I think, quite doubtful. But I am sure the Justice Department has already thought about that. I think that because Blackwater was not working with the Department of Defense or Armed Forces but rather with the embassy, they are outside that statute. There is another possible track because Blackwater personnel are often ex-military. Under certain circumstances, retired military personnel can be subjected to court martial jurisdiction. It did occur to me that some of the Blackwater personnel that were under the gun were under court martial jurisdiction. However, I talked within someone that looked into it and it turns out that none of the indicted Blackwater personnel were retired from

the military, and thus not subject to court martial jurisdiction.

If the case fails in the courts, what will the outcome be?



Mourners at the grave of Ibrahim Abid, another shooting victim in the Nisour Square incident. Fidell argues that the failure of litigation to go to trial will have considerable implications for relations between the U.S. and Iraq. (Gorillas Guides/flickr)

The outcome would be terrible, at least politically. In the international sense, it is a terribly devastating blow. It is a case in which Iraqis had every reason to expect would at least end up in trial. These gentlemen will not go to trial. I have so say, however, that I am not particularly surprised by the outcome due to Department Security's role in this in the first place. The fact that there had been questioning and promises made by Department Security was a red flag early, early on. This case is an added irritant in an already irritated relationship between the United States and Iraq. How are the Iraqis supposed to feel? Our fine legal system has prevented us from prosecuting because we botched it. That is cold comfort to Iraqis. Very nice, we have a wonderful legal system. Did their loved ones get justice? No. Because our policemen blundered it. That's not satisfactory. This is another grievance that Iraqis--especially in this case--can quite reasonably harbor.

What about domestically?

I do not think there will be any domestic fall out. The public's attention is not focused on this. There are too many other things competing for the public's attention: politics, who has the late night show, you know.

Do you think future investigations might be different?

I think this case is one of a kind. It happened to be investigated by an agency that is way beneath the level of investigation and skill of what the FBI has in terms of interrogational techniques. It was a State Department contract and Blackwater was protecting State Department personnel. Thus, the State Department was the first to investigate.

So then what should the United States do about reforming our legal code to better regulate the actions of private military contractors?

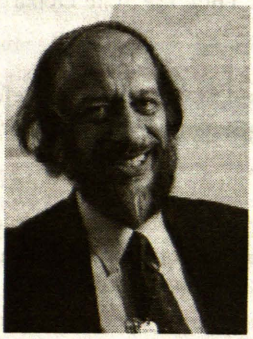
Other countries don't use military contractors on the scale that we do. We are on the front on this one and I think it is a total mistake. It is almost like a narcotic. We have gotten into a habit forming practice of relying excessively on civilians to conduct tasks that military personnel should do. For some time, we had more contractors than uniformed personnel on the ground in Iraq. We have to kick the habit. We have to really ween ourselves from using civilians to perform essential military functions. If conditions on the ground in Iraq did not lend themselves to normal military operations, then something else has to change. I think we have gone way overboard. Civilians are operating outside the framework of military law and the Geneva Conventions. And we are the worse for it. Questions of discipline and blurring the line between military and civilian raise, and it is extremely unfortunate. Thus, shrink the civilian component of the military workforce. The other component is to have a much more alert and vigorous discipline program for civilians that do work along our GIs. A system to ensure accountability.

And what would that system look like? How broad are the necessary measures?

As broad as the practical realities dictate. So we never have a person somewhere on behalf of the United States government--albeit as a civilian contractor--who can inflict this kind of injury not only on the Iraqis but on the US-Iraqi relationship. It is preposterous. That means amending MEJA to include contractors working with all agencies and not just the Department of Justice. I would rather do that than make greater use of the UCMJ provisions. That is limited and should be limited.

Tackling Climate Change

An interview with Rajendra Pachauri



Conducted by Nicholas Rugoff and Alexander Kayfetz-Gaum

Dr. Rajendra K. Pachauri is Chairman of the United Nations Intergovernmental Panel on Climate Change and Director General of The Energy and Resources Institute (TERI). In 2007, Dr. Pachauri accepted the Nobel Peace Prize on behalf of the IPCC. He is the head of the newly established Yale Climate and Energy Institute.

AKG: How does the United States' failure thus far to pass major domestic legislation affect the international community's efforts to come to some binding agreement on climate change?

I would have liked to see legislation already in place, because that would have really made things much easier for other countries to act. Europe has clearly laid down the condition that if other countries are willing to take adequate action, European countries are even willing to up their commitments for reduction emissions to 30%. I think that had the U.S. passed legislation and also taken certain executive actions that amounted to much more than what is now being offered, it would also have had a major impact on other countries. The fact is that you have a separation of power in the US Constitution and the executive branch can only do so much. So I would say this is a good start; it's certainly not the end of the journey, but it's a very good beginning.

NR: How does the ongoing controversy, dubbed "Climategate," over a series of emails between researchers at the Climate Research Unit at the University of East Anglia affect the work of the IPCC?

I think that it only establishes the fact that the IPCC's processes and procedures are robust. To the extent that even if one or more people want to do something that's not entirely in keeping with the credibility of science, this shows that they will not get away with it because, if you look at the IPCC's Fourth Assessment Report, nothing of the kind that is being revealed in these emails exists in the smallest extent. That is because we have checks and balances, we have teamwork, and no individual scientist can really influence the assessment in one direction or another. I think this is just a storm in a teacup. It doesn't really amount to anything, and it only validates that the IPCC itself has followed the right procedures.

> *"I place a lot of faith and hope in young people throughout the world because I think they can really make sure a new ethos and a new set of values is established."*

NR: Throughout your career, you've advocated very fundamental societal shifts. Do you see these changes eventually coming more from strong top-down leadership or bottom-up grassroots organizations?

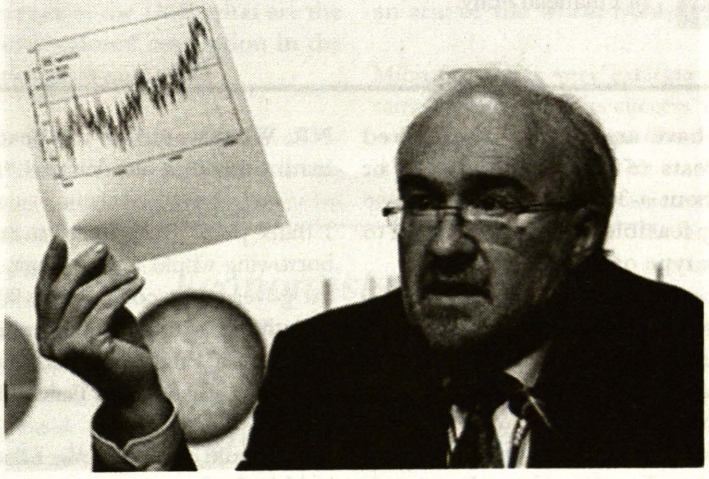
You need a combination of both, but it seems to me that grassroots action, large-scale awareness on the part of people on what needs to be done, and most importantly, realization on the part of youths that business as usual is not going to work, is really going to make the difference. I place a lot of faith and hope in young people throughout the world because I think they can really make sure that a new ethos and a new set of values is established, and they can even shame adults into taking the right sort of actions.

NR: Do developing countries such as India have different responsibilities than developed countries such as the United States?

Yes. That's clearly enshrined in climate change frameworks

because there are historical differences in the responsibility for this concentration of greenhouse gasses, and there is widespread poverty in several parts of the world. It is therefore in the interest of everyone, both rich and poor, to see that we eliminate poverty. If we are to do that, then emissions in developing countries like India certainly will increase. In India there are around 400 million people who have no access to electricity. As far as cooking energy is concerned, about 90% of the rural population uses instruments such as biomass fuels and twigs. Around 1.6 billion people worldwide have no access to electricity. Surely, we can't have them live in darkness. They have to be given electricity — so more energy will be consumed. We have to be sensitive, equitable, and fair when looking at these issues and what they represent.

AKG: Many people in positions of power have spoken out against fears of global warming. What is your message to skeptics of global warming? How do you persuade policy makers to address an issue they believe is a hoax?



Michel Jarraud, secretary-general of the World Meteorological Organization, holds up a temperature chart during a press conference at the UN Climate Conference in Copenhagen. (Creative Commons)

I think they should open their minds and start looking at the facts. I have nothing against them — it's a free world and people are entitled to their own views. I would ask them: how can you continue to be so intolerant of facts as they come out? I think it's time that they start looking at the objective results of what science has provided us.

NR: You recently talked about a variety of basic changes, such as less ice water in restaurants and energy charges for hotel rooms. Can you talk about these recommendations and where you think these changes could come from?

In terms of the ice water, in many places, you go and sit in a restaurant and even before you order, the waiter or waitress brings you a glass of water with ice in it. You may or may not need ice. All I am saying is that we need a system that firstly uses the market. For instance, if you go into a hotel room and use a lot of energy, you certainly should pay for it and pay for it explicitly. I think we also need to mold our behavior to see that we eliminate waste. In my mind, putting ice that you don't need into your water is a huge waste. If that happens collectively everywhere in the world, you're just wasting a lot of energy and a lot of water. Let there be a link between our consumption and rational decision-making that influences that consumption.

NR: What can college students do to reduce their carbon footprints?

Firstly, Yale is doing a great job to bring about a major reduction in emissions and provide an example not only to people within the campus, but the outside community as well. I think students should carry on some degree of advocacy. When you go home and spend time with your parents and families, make sure you interact with people around you and, if possible, start some kind of a movement, because you have to break the inertia. In the absence of people doing these things, we're not going to be able to get anywhere.

AKG: You often remark on the negative effects of food production on the environment. What legislative steps should be taken to target this large and often underrecognized contributor of greenhouse gasses?

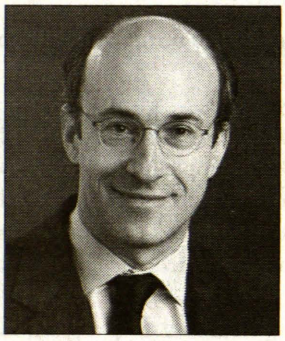
I think there is a lot of research and development that has to be done. It's essential that we develop new agricultural practices, including new strains of crops that have to be grown, and perhaps even a new mix of agriculture products that have to be produced. I think that the agricultural community clearly has to anticipate some of the effects that are taking place. We should start research and development, and make changes in our practices ahead of time so we don't run into a problem of compromising food security in the future.

NR: Lastly, what are your long-term goals for the Yale Climate and Energy Institute?

I think it should develop as a major institution that influences decisions that provide solutions to many of the problems we face. I hope that it can really create knowledge on a large scale on a variety of climate and energy issues.

This Time is Different

An interview with Kenneth Rogoff



Conducted by Scott Nelson and Nicholas Rugoff

Kenneth Rogoff is the Thomas D. Cabot Professor of Public Policy and Professor of Economics at Harvard University. He was previously Economic Counsellor and Director, Research Department of the International Monetary Fund, and the Charles and Marie Robertson Professor of International Affairs at Princeton University. He received a B.A./M.A., summa cum laude, in Economics from Yale University, and a Ph.D. in Economics from the Massachusetts Institute of Technology. A chess prodigy, Rogoff received the highest title in chess, International Grandmaster, in 1978. His latest book is This Time is Different: Eight Centuries of Financial Folly.

NR: Many economists have argued that the United States faces serious threats of dramatic inflation or default. You've talked about a 30% or higher increase in taxes. Is this politically feasible? Will it be enough to prevent inflation or some type of default?

Well, right now the Federal government is taking in about 15% of GDP in taxes, and it's spending 20-25%. The spending can come down, but not that much, and eventually the taxes will have to go up. Historically, Federal taxes have been about 20% of GDP. Given the huge deficits we've run, and the actual likely increase in spending to fund social programs like the health care plan, it's hard to imagine that taxes won't have to go up to around 23% of GDP. That would actually be a 50% increase from where we are. There are certainly substantial tax increases ahead, and I think the catalyst for them will be concern about rising interest rates on US debt.

NR: You've described the US banking system as vulnerable and a potential cause of continued domestic economic troubles. What steps need to be taking to overhaul and repair the system?

The single most important change is that the government needs to put in regulations that make it much harder for financial institutions that are implicitly guaranteed by the government to borrow massive amounts at short-term levels. It would also be extremely helpful if there were a way to remove the government's implicit guarantee with "too big to fail" banks. Unfortunately, it's not clear that this is easy. I think we need rather radical change in our regulation system, particularly after the extremely generous bailout packages that the banks were given in the financial crisis.

NR: What would be the best way to remove financial instiutions that are deemed "too big to fail"?

I think putting large capital requirements on short-term borrowing would be the single most effective change that the government could make. With "too big to fail" banks, we either have to put some limits on size, as Mervyn King at the Bank of England favors, or at least have a significant tax on size, as I believe the Federal Reserve is likely to propose.

NR: Should central banks raise rates to thwart perceived bubbles?

I think there is no question that when central banks see asset price bubbles that are accompanied by huge amounts of borrowing, that should be a blinking red light that requires close examination. Ben Bernanke and others have argued that central banks should pay attention to bubbles, but that they

Photo courtesy of Creative Commons

should treat them with regulation. I think that this is true in the first instance, but that regulation is often insufficient for many reasons. It is difficult for regulation to overcome tremendous political pressures and have a lasting effect. In cases where we see really sharp run-ups in asset prices that are fueled mainly by increasing leverage, it does make sense to raise interest rates. Economists need to come up with better models for how to calibrate how much interest rates should be raised in these situations. We don't really have good models, and as a result, are stuck analyzing past judgments. Central banks need better rules to decide, and better frameworks for deciding how high to raise rates to lean against the wind in leverage-fueled asset bubbles.

SN: Based on your experience at the IMF, what are the right ways to deal with institutional corruption in the developing world? Who can fix it and how?

I think there is relatively little that the outside world can do for a sovereign state that is rife with corruption. I think it is very helpful to have non-profit agencies such as Transparency International, which play a valuable role in monitoring corruption. There are steps that can be taken and George Soros had a good recommendation some years ago that basically said that Western oil companies and the like need to report their payments to local officials in oil rich countries. Europe and the United States have adopted various rules to enforce more transparency on payments made to national officials when doing business abroad. The Chinese, of course, famously have not been complying with this rule, and there's been a lot of discussion about that. While there are limits, it's certainly important for the United Nations, the IMF, the World Bank, and others to try to shed light on corruption. Ultimately though, a country's own citizens have to deal with their internal corruption.

> *"Economists need to come up with better models.... We don't really have good models, and as a result, are stuck analyzing past judgments."*

SN: What do you see as the future of development lending?

I think that we have learned a lot of lessons and the World Bank does things much better today than it did in the past. Jeremy Bulow, who was my classmate at Yale and a big factor in my decision to go into economics, and I have written a number of papers arguing that it would be better to give developing countries outright aid than to give them loans. Development takes so many decades – we're talking potentially 50 or 100 years – that it's unrealistic to expect that they'll grow so quickly as to be able to easily repay the loans. Historically, there's been a great deal of evergreening of development loans, and a lack of transparency about who is getting money and why. Also, because so much development aid is given in the form of loans, there's a tendency to give too little money to the poorest countries, which obviously can't repay loans as easily as wealthier ones. So, we've argued in this series of papers that we need a better system with most development aid in the form of outright grants instead of loans that need to be repaid. Even if the loans are at very low interest rates, it is still difficult for these countries to repay them. This leads to a lot of confusion about who is getting paid, how much, and why its being given, so we advocate in favor of grants.

SN: Would you want microfinance lending to become an arm of the World Bank or the IMF?

Microfinance is very exciting and innovative, but at the same time, a lot of its success versus traditional banking is somewhat of an illusion. One of the reasons microfinance is successful is because it's small, and microfinance institutions have tremendous international backing and governments are very cautious about interfering with their activities or heavily taxing their money. If microfinance institutions become large, governments in the developing world will not be able to resist causing them the same problems that they do with their own banks. Microfinance thrives because of financial repression, corruption, and other problems in the developing world. As long as it's small, it's effective, but if it becomes large, it will run into some problems. I wouldn't particularly favor moving it to these larger institutions. It definitely should not be a branch of the IMF, as the IMF has no real specialty in development. I think the World Bank does better by simply providing support from the outside. Microfinance is largely successful because of its outside support from institutions such as NGOs, and it is probably best left this way.

NR: What role does domestic debt play in countries external debt defaults?

The difference between external and domestic debt, at least as Carmen Reinhart and I define it in our book This Time is Different, is that external debt is legally enforced in another jurisdiction, usually London, New York, Paris, or Tokyo, while domestic debt is enforceable in the issuing country's courts. It has widely been believed by policy-makers and scholars that domestic debt was relatively unimportant for most emerging

markets, until relatively recently. One thing we show in our book is that this is not true. For much of history, domestic debt was large and important, even in emerging markets. When you take it into account, it helps explain why countries have seemed to default at such low levels of external debt. That's not to say that domestic debt and external debt are necessarily the same — you can partially default on domestic debt through inflation and there are different penalties to outright default, but still, the repayments have to come from the same pool of funds. I think scholars also believed that even if there were domestic debt in emerging markets, it would be given low priority and made junior to powerful external creditors, but Reinhart and I find that this is not true and there seems to be an equal priority. That shouldn't be so surprising, given that domestic debt is often held by powerful domestic holders. We also show that domestic debt has played a large role in many of the great inflations that have been seen around the world. This role has been ignored by scholars and the literature on hyper-inflation for at least 50 years.

"I think academics play their most important role in changing long-run views rather than day-to-day policy. This is where academics really excel."

NR: Will the Chinese capital expenditure boom lead to an inevitable bust? If so, how severe would the consequences be for global markets?

The Chinese leadership has done a magnificent job of engineering China's growth over the past three decades, but it is extremely difficult to grow at the rate China has in an emerging market, without all the usual problems of emerging markets, and avoid a financial crisis. China will inevitably have a financial crisis and when one occurs, it will be very, very painful to the rest of the world. The United States depends on China for cash, as they fund our deficits. Developing world and emerging market countries depend on China for their commodities. China has been driving world commodity prices, and I think that more broadly, global political stability depends on China continuing to play a positive role in facilitating global peace. Any kind of destabilization in China will certainly not be welcomed, but hopefully, it won't happen soon, though it could.

NR: You've talked about potential United States inflation down the road. Many money managers seem to share this idea, and as a result, there has been a largely one-sided bullish trade on gold. What are your thoughts on gold?

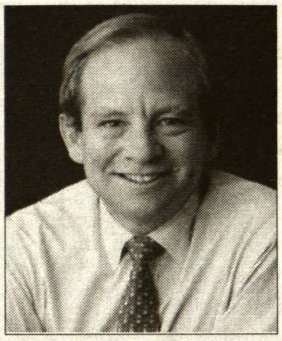
I still have my Phi Beta Kappa key from Yale. I can't remember if it's 18- or 21-carat gold, but I haven't sold it yet. During the 1970s, many commodities in general did well when there was inflation. Other hedges, such as art, did well. Unfortunately, when there is generalized inflation, there are not so many ways for investors to hedge themselves, especially if the tax system is very biased. The effective tax rate in many countries, including the United States, goes up when there is inflation. That's certainly a major reason gold has been attractive. I think also, emerging markets that have been piling up dollar reserves are seeing that the endgame to U.S. borrowing might not be pretty, and they want to diversify with gold. It's important to remember that rich countries hold about half of their reserves in gold, whereas the typical emerging market country maybe holds 3% or 4% of its reserves in gold. Some of the price increase we've seen have been responses to countries like China and India increasing their gold holdings, but I don't think the trend will continue indefinitely, unless we really do see a huge spike in inflation.

SN: What do you think the track record of academics moving into public policy roles is? What do you think is the best way to handle that transition?

I think the track record is very good. I think academics play their most important role in changing long-run views rather than day-to-day policy. This is where academics really excel. We try to find ideas that will influence the way that people will think in 25 or 50 years, not just what they think a few days from now. Day-to-day policy is seldom influenced by radical new economic ideas. It takes many decades and a huge consensus before new ideas really come into play. So most academic research is geared toward long-term public debate rather than day-to-day decisions. That said, training in economics is extremely useful in many public policy decisions ranging from top economic advisors to the Supreme Court. I think economic training is very valuable for most citizens, but especially policy-makers.

Remaking The Big Three

An interview with Steven Rattner

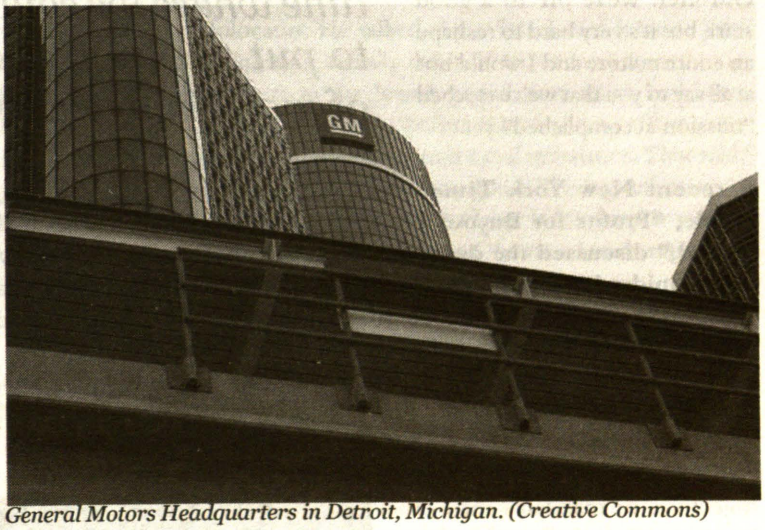


Conducted by Nicholas Rugoff

Steven Rattner, former U.S. Treasury Automotive Industry Advisor, oversaw General Motors and Chrysler's bankruptcies and restructuring processes. Mr. Rattner is a founder of Quadrangle Group, an investment management firm. Prior to that, he served as Deputy Chairman and CEO at Lazard Frères, Managing Director at Morgan Stanley, and Vice President at Lehman Brothers Kuhn Loeb. A former New York Times correspondent, Mr. Rattner received a B.A. with Honors in Economics from Brown University, where he was awarded a Harvey Baker Fellowship for Graduate Study.

Jerry Flint, Forbes Magazine's senior automotive editor, recently characterized private equity giant Cerebrus, which took over Chrysler, of knowing "nothing about the auto business — and killing new models and old models, and stripping the company of talent." Given your own private equity background and lack of experience in the automotive industry, what gave you the confidence to accept the job?

I was confident because I, and the people who asked me to take on the job, felt that auto experience would certainly be additive, but overall, this was fundamentally a restructuring exercise rather than a management exercise.



General Motors Headquarters in Detroit, Michigan. (Creative Commons)

You recently spoke about the difficulties in bringing top private sector talent into public service. Given the controversy over financial regulators such as Henry Paulson's and Timothy Geithner's Wall Street backgrounds, how can we make it easier for the best people to move back and forth between the private and public sector, while maintaining the integrity of the regulatory system and avoiding appearances of quid-pro-quo?

I think the first thing that is needed is a broader acceptance of the principle that people from the private sector can make a big difference and a positive contribution. Right now, there is just anger and hostility, particularly toward the financial community, that people coming from those private sector areas lack, in many cases, the credibility needed to do an effective job. So the public and our leadership has to accept the notion that private sector expertise is valuable. Beyond that, I think that the government has a very rigorous set of compliance procedures to avoid quid pro quo or any financial conflict. These procedures are very burdensome, but they are appropriate and many people in the past have been able to comply with them and serve. I think the existing system with all its ethical restrictions should give people comfort that there is not a quid pro quo.

Despite Chrysler's weak product line and declining reputation, you are optimistic about the company's future mainly because of Fiat's stake. Given Fiat's past failures in North American markets, why will this time be different?

We cannot be sure about how successful Fiat will be, that's what makes life interesting, but its a completely different company today than it was the last time it tried to market in the US. Different management, different products, different everything. We are cautiously optimistic about Fiat's appeal

among US buyers since I don't think its reputation-related issues are still lingering.

Can you talk about remaking a well-entrenched corporate culture like GM's?

It is extraordinarily hard and certainly is not yet completed. It is very much a work-in-progress. We'll see how it goes. I will point out that there have been other examples where corporate cultures have been changed very dramatically, IBM is one that comes to mind. I would acknowledge that in most cases, that happens by bringing in at least 1 or 2 people from outside. We made the best decision we thought we could on management in terms of replacing former CEO Rick Wagoner with Fritz Henderson, another GM-lifer. We're off to a good start, but it's very hard to reshape an entire culture and I would not at all say to you that we've reached "mission accomplished" yet.

> *"On Chrysler, our instinct was that it was just not a time where we could afford to put 300,000 people out of work in one day."*

A recent New York Times article, "Profits for Buyout Firms as Company Debt Soared," discussed the destructive side of private equity. Amidst high unemployment and continued job outsourcing to third world countries, there has been a lot of frustration with private equity firms. Should these firms have broader social responsibility beyond maximizing profits?

No, I don't think private equity firms have any different objectives or mandates than other businesses. I don't see why we single out private equity and impose on them some different objectives and conditions. The mandate of private sector business is to make money for their shareholders in a socially responsible way, and that is an important part of how our system works. If you contrast that with Europe, where companies operate under a whole series of other mandates, in terms of other objectives like employment levels that they're supposed to try to achieve, you end up with what I think is a lose-lose situation for everybody.

What timeline do you see for a General Motors IPO?

I'm not sure yet. I think everyone wants it as soon as possible. There's a lot of paperwork that needs to happen and they need to continue to improve their results, particularly in North America. I think realistically, we're probably talking about a year from now, give or take a month or two.

What's been the most difficult part of the process?

The most difficult part was the decision we had to make on whether or not to save Chrysler. I think we made the right decision, and so the lesson I took from that is you can look at as much analysis as you want, but you ultimately have to make a judgment call that follows your instincts. On Chrysler, our instinct was that it was just not a time where we could afford to put 300,000 people out of work in one day.

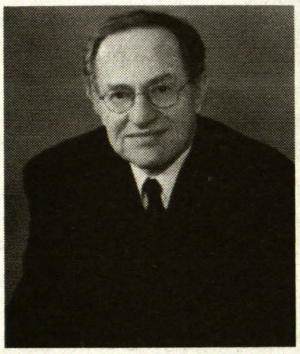
What's next for you?

I am writing a book about my "auto-adventures." It's very time consuming and I'm trying to focus all my efforts on that. I really enjoyed having a foot in the private financial world and a foot in the public policy world, and if I can find some way to maintain that balance, that would get me excited. P

A struggling economy and lagging American auto industry have led to many struggles for dealerships, as illustrated by this seemingly full Chevrolet dealership. (Creative Commons)

A Staunch Defender

An interview with Alan Dershowitz



Conducted by Jaclyn Delligatti and Nicholas Rugoff

Alan Dershowitz is the Felix Frankfurter Professor of Law at Harvard Law School. He has published more than 100 articles in magazines and journals,and authored 27 fiction and non-fiction works. More than 300 of his articles have appeared in syndication in 50 national daily newspapers. He has been called "the nation's most peripatetic civil liberties lawyer" and one of its "most distinguished defenders of individual rights," "the best-known criminal lawyer in the world," "the top lawyer of last resort," "America's most public Jewish defender" and "Israel's single most visible defender – the Jewish state's lead attorney in the court of public opinion." Dershowitz is a graduate of Brooklyn College and Yale Law School.

NR: In your endorsement of Barack Obama in October 2008, you cited his support of Israel as a major factor in your decision. Nine months later, in July 2009, you came out with an editorial in the Wall Street Journal – "Has Obama Turned on Israel?" – that stated, "there may be coming changes in the Obama administration's policies that do weaken the security of the Jewish state." After his first full year in office, how would you rate the Obama administration's Israel policy? How do you see it evolving over the coming years?

In terms of action, his administration has done quite well. They've done nothing to undercut Israel's security. They have supported Israel's right to defend themselves, for example, by rejecting the Goldstone report and defending Israel's right to build a security barrier. In terms of rhetoric, I think that the Obama administration is getting a B minus, with grade inflation. His choice of words has been very insensitive. I'll give you a recent example. He announced, I believe on January 15th, that he wanted to praise all of the countries that had come to the aid of Haiti. He mentioned Mexico, France, the Dominican Republic, and a few other countries. Now, Israel of course was the dominant country providing aid to Haiti. They were the first country there, set up the best field hospital, and sent the most doctors. Obama made a deliberate decision to omit Israel from the list. I think he did that for obvious reasons, since every time he mentions Israel, he wants to mention Arabs and Palestinians to show balance. He couldn't do that when it came to Haiti, because the Arab world and the Muslim world have done nothing to help Haiti, just as they did nothing to help after the Tsunami, when Israel was also over the top with its support. So, instead of saying Israel without saying the Arabs, he just left out Israel. Also, in his speech in Cairo, he used words that made some people believe that he was comparing the plight of Palestinians in Gaza with victims of the Holocaust. He talked about Israel as if it came into existence only as it literally did in 1948, without mentioning its predecessors in the Jewish population which had been there for many many years before that. So, in an effort to be balanced, his words have created a real imbalance. That said, his deeds so far have been pretty good. The big unknown is whether he will accept a nuclear Iran. If he does, it will be among the worst legacies of the Obama administration. If under Obama's watch, Iran gets nuclear weapons, changes the entire dynamic of the Middle East, allows Hezbollah and Hamas to operate under a nuclear umbrella, and allows for the possibility of leakage, under which al-Qaeda could conceivably get nuclear materials to use against the United States, it would be one of the worst foreign policy disasters in modern American history. It remains to be seen whether or not the Obama administration will keep their essential promise never to accept a nuclear Iran. I'm uncertain about how that will work out.

JD: In your 2002 book, *Why Terrorism Works*, you talked about how we need to develop what you refer to as a "jurisprudence for the emerging preventative state." As the United States takes a more preventative approach to terrorism, perhaps the rules of the game have changed…

Absolutely. We need a jurisprudence. It's not so much that I'm saying the rules should change; I'm saying the rules have changed, and we don't have a jurisprudence to govern this changing approach. It goes from the mega to the micro levels. At the micro sense, we have to decide what to do with the people at Guantanamo, and that raises the issue of whether there should be an explicit system, for example, of preventive detention. This would involve holding people that we have not convicted of any crimes, and can't convict of any crimes, but who we strongly believe would be terrorists if we

let them out. That would be very dangerous to do, but on the other hand, so would letting them out. Now, we're doing the third alternative and keeping them in without a jurisprudence, and this is also very dangerous. These are very hard questions. If the United States were to try to prevent Iran from developing a nuclear weapon, that would be a preventive war or preventive military action. We don't know what the rules are there. Right now, we are acting without the constraints of a jurisprudence. It's very important in a democracy that a jurisprudence precede action rather than follow action.

NR: How effective is torture in gathering information? Under what circumstances, if any, should the United States use it?

Well, first of all, torture is extraordinarily effective in gathering information, and anybody who tells you that it's not is just lying through his teeth. That doesn't mean that is always or often works, but it does sometimes work and there's just no dispute about that. There is absolutely the widest range of evidence supporting that conclusion. I wish it weren't so, but it's true. During World War II the Nazis managed to get everything they needed from the French Resistance, including the names of brothers, parents, loved ones and children. You can get information from torture that you can't get in any other way. Anybody who denies that is desecrating the memory of hundreds of people who died under torture and gave information. It's one of these myths that torture never works and therefore we don't have to even consider the issue. In my view torture works and we should never use it. We have to understand that we are sacrificing very important information in the name of perhaps a more important principle. That said, it works and I'm not one of these civil libertarians who believes that free speech doesn't hurt anybody and therefore we should have it. Free speech is very dangerous, and we should have it. Torture works, and we shouldn't have it. I'm not in favor of using torture, but I do recognize that it will be used. There is not a single president of America, including Obama, who swore not to use torture, that wouldn't use it. If the CIA came to Obama's office and said, "look – there is a nuclear bomb in New York City set to go off in 20 hours. We have one of the people who knows where it is and Mr. President, you're going to have to make a decision. Either you're going to be responsible for the deaths of 500,000 people or the torture of one person. Which one will it be?" Every president will torture under those circumstances. I'm not saying that it's right or good, but that it will happen. If it's going to happen, we ought to have rules that govern when it's permissible and when it's not. You might ask me, how can I oppose torture and still favor rules? Well, I've opposed the death penalty since I was old enough to remember, and yet I favor rules for administering the death penalty because I know it is being administered today, and therefore we need to have rules. If torture is going to be used, we have to have rules.

> *"Torture is extraordinarily effective in father information, and anybody who tells you that it's not is just lying.... That doesn't mean that it always or often works."*

JD: You have actually proposed a type of warrant for torture.

Absolutely. You have to get the court to dirty their hands. You have to get the judges to commit to something. They'll be presented with a warrant that says, "Your Honor, unless you allow us to torture this guy, a bomb will go off." Judges don't want to make those decisions. They would rather leave it to the underlings and the CIA. Not in a democracy. In a democracy, decisions need to be made at the highest level. I'll give you an analogy. Let's assume an airplane is flying towards the Empire State Building in the middle of the day. There are 10,000 people in the Empire State Building and 300 people in the airplane. All evidence suggests the plane has been hijacked and is headed towards the Empire State Building. You have an hour to make a decision and you can't evacuate the building in an hour. The only option is to shoot down the plane. There's a 90% possibility that the plane is being run by terrorists and a 10% possibility that passengers have taken or will take back control of the plane. Somebody has to make that decision and it shouldn't be some low-ranking police officer. It should be the President of the United States or the Secretary of Defense. The highest possible officer of the government should make the decision of whether to shoot down that airplane. The same is true for any important state decision, including torture.

JD: You, among many other people, came out against the Goldstone Report...

Well I've now written a very thorough 50 page response with paragraph-by-paragraph analysis of the report showing that they used totally different evidentiary standards when it comes to criticizing Israel and criticizing Hamas.

JD: Do you think it had an effect on U.S. public opinion towards Israel?

Yes. Normally a United Nations report condemning Israel would be thrown in the garbage because everybody knows the United Nations, and especially the Human Rights Council, always condemns Israel. They were very clever this time and picked a Jew named Goldstone, because he was a Jew. The only problem they had with Goldstone was that they wished his name had been Goldstein or Goldberg because Goldstone isn't quite as Jewish. They deliberately picked him because he was Jewish and had a distinguished record on human rights issues. The report is totally and completely backwards. It says there is no evidence that Hamas used civilians or hid among civilians, when there's massive evidence that they hid among civilians. It says that Israel intended, at the highest levels, to kill civilians, when really Israel went to the greatest lengths to avoid killing civilians. They got everything totally backwards, but having Goldstone's name on the report gave it some credibility. There are people in the United States, including professors and students at Yale and Harvard, who say that if Goldstone wrote it, then it must be right. The interesting thing about the Goldstone Report is that it's one of the first cases I've ever seen where it is an ad hominem in reverse. The classic fallacy of ad hominem is that you don't dismiss an argument because of who made it. The opposite of that, which is just as powerful logically, is that you don't accept an argument just because of who made it. The Goldstone Report is completely discreditable, except for the fact that Goldstone wrote it. Most of the people who support it claim that it has to be right because Goldstone wrote it. That is the logical fallacy of ad hominem in reverse.

> *"I think the two-state solution [between Israel and Palestine] is the only just solution and I've always felt that way."*

JD: You mentioned Hamas. Mahmoud Abbas cited the difficulty of achieving peace with Israel when he declared that he won't be seeking another term. How do you envision his decision will effect the actions of Hamas in Palestine? Will this move Palestine in a more peaceful direction when it comes to seeking a compromise with Israel?

I hope so, but I doubt it. In 2000 and 2001, Israel, through President Clinton, offered the Palestinians virtually everything they had been asking for. This included the entire Gaza Strip, 95 or 97% of the West Bank, a capital in East Jerusalem, a $35 billion reparations package for refugees, the end of the occupation and settlements, and virtually everything else the Palestinians wanted. The Palestinians rejected it, which the Saudis, through Prince Bandar called a crime against the Palestinian people. Israel has wanted peace. It offered peace in 1948, 1967, 1993 and 2000. Netanyahu wants to sit down unconditionally and try to resolve this with the Palestinian people today, but Abbas has refused to do it and Hamas won't change his charter. Israel is now a prosperous country that has had a tremendous breakthrough with high technology. It now exports more life-saving medical technology around the world per capita than any other country. The peace dividend to the world would be unbelievable, and Israel wants peace. Let me make two statements and tell me if anybody contradicts them. Firstly, if Palestinian terrorists laid down their arms, there would be immediate peace. I don't think anybody disputes that. Secondly, if Israel laid down its arms, there would be immediate genocide. I don't think anybody would dispute that. Those are two horrible facts of life. If Israel laid down its arms, they would be slaughtered. If the Palestinians laid down their arms, Israel would extend an offer of peace. If those two statements are true, then you have to ask yourself, who is the barrier to peace?

JD: Do you think a two-state solution will ever be possible?

I do and I think it is inevitable. I've always been opposed to the civilian settlements on the West Bank and the Israeli policy of having civilian settlements. I think Israel's desire to live within the 1967 borders has changed a little bit by the realities on the ground, but that every piece of land that Israel takes should be compensated for by land that Israel gives back to the Palestinian state. Israel should not be governing over Palestinians and Palestinians shouldn't be governing over Israelis. I think the two-state solution is the only just solution and I've always felt that way. I've advocated it since 1973 and I continue to advocate it.

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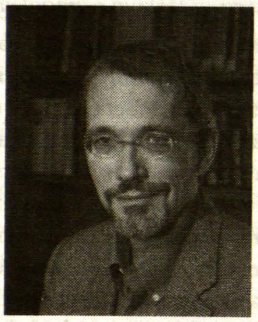
In Pursuit of Equality

An interview with Ian Ayres



Conducted by Jaclyn Delligatti and Nicholas Rugoff

Ian Ayres is a lawyer and an economist. He is the William K. Townsend Professor of Law and Anne Urowsky Professorial Fellow in Law at Yale Law School and a Professor at Yale's School of Management. He is the editor of the Journal of Law, Economics, and Organization. *Professor Ayres has published nine books and more than 100 articles on a wide range of topics. He received his B.A. (majoring in Russian studies and economics) and J.D. from Yale, and his Ph.D. in economics from M.I.T.*

NR: In response to the Supreme Court's recent ruling in Citizens United v. FEC, you and Bruce Ackerman have advocated a law against types of electoral spending by federal contractors. How would this work and would it be politically feasible?

What Bruce Ackerman and I have proposed is that federal contractors be prohibited from buying ads that expressly advocate the election or defeat of particular candidates. I think this would likely be constitutional, and these days, whether something is politically feasible depends on a variety of factors. This type of legislation has been feasible in the past. We've had a long tradition of having special restrictions on the political activities of federal contractors. We've also done the same with government employees, as demonstrated in The Hatch Act of 1939. In some sense, this is just trying to take the personhood of corporations seriously. The theory behind the Supreme Court's decision is that corporations are fictional people that are endowed with some constitutional rights as corporate persons. They should be treated with at least the same restrictions that we impose on real people. Hopefully Congress will take seriously the risk that defense contractors will deploy their spending to reward or punish candidates that aren't willing to shell out money to them. That kind of gross bias is a concern, so it's possible that Congress will act as it has many times in the past to stop federal contract corruption.

NR: Given incumbents' desires to remain in office, what incentive do they have to reform campaign finance in a manner that provides challengers with a more even playing field?

They may not have big incentives to make such reforms. However, at moments of political fervor, particularly after a crisis such as Watergate, we have seen Congress, pushed by the voters, take action. Once every twenty years or so, there seems to be action. It may be that we have to wait a little bit longer. We had a major campaign finance reform after Watergate and we had it recently with the bipartisan McCain-Feingold bill, which was partially struck down last week, though there are still parts that remain in place. It's always safe to bet on Congressional inertia, but notwithstanding the self-projected urges, Congress has moved several times in our nation's history to restrict corruption.

NR: Your 2005 book *Straightforward: How to Mobilize Heterosexual Support for Gay Rights* **offered a variety of suggestions to boost participation in the gay rights movement. How effective has heterosexual participation been in the past 5 years?**

Well many non-gay supporters have come forward and worked for equality in marriage and in employment, and on many of the state referendums. The opinion polls on equality in employment, including military employment, continue to show improvement and are at their highest among the youngest cohorts. I think that it's clear that the future belongs to equality. I'll give you a specific place where I think that on the ground we can see change. If you roll the clock back ten years ago, heterosexual couples sent wedding invitations to their friends and family, including their gay friends, without the slightest sense of unease. Now there are loving heterosexual couples who are even choosing not to marry until marriage equality comes to their state. There are others who are making statements at their weddings, or when they send that invitation, they add on personal notes, so there is evidence that change is occurring on the ground.

JD: After initiatives such as Proposition 8, where do you see the gay rights movement headed?

Two things are likely to happen. Firstly, we're likely to see important progress in employment equality. President Obama expressly called for repeal of "don't ask, don't tell" in the military, so we may achieve employment equality there within the coming year. I think that within the next two to three years, and maybe even within this next year, we'll have a federal statute mandating non-discrimination on the basis of sexual orientation at the federal level. Many states already have this in place and about 90% of Americans think it would be wrong not to hire someone simply because they're gay. We're going to get full employment quality pretty soon, and the struggle for marriage equality is also likely to take place over the next few years, though primarily at the state level. I would imagine that there will be another state or two within this coming year that will allow same-sex couples to marry. The evolution will be gradual and it's definitely the case that constitutional amendments have succeeded in getting on the ballots in many states. That's a last gasp of the opponents of marriage equality realizing that demographics are against them and trying to lock a constitutional provision in place because they realize that the future is pushing against them. There's a great statistical analysis by Nate Silver on the demographics of these marriage propositions. I think that there's actually great agreement on the predictive issues from both opponents and proponents of gay marriage. They both recognize that the writing is on the wall and within ten to fifteen, and certainly twenty years, marriage equality will come to the United States.

JD: I want to shift to talk more about some of the work you've done involving civil rights and racial discrimination. Do you think some law enforcement agencies and perhaps some criminal justice policies are inherently racist, or does the problem lie with those who are chosen to implement the policies?

I think the term inherently racist is unhelpfully imprecise. When I look at issues concerning race, I make a distinction between trying to identity outcomes where a decision maker makes his or her decision contingent on race, and those decisions, whether they're contingent on race, that might be contingent on some non-race factor that still has some unjustified disparate impact. In the law, those two types of discrimination are referred to as disparate treatments and disparate impacts. Sometimes I've been able to identify decisions where there is fairly credible evidence that race-contingent decision making is taking place. I went out and did randomized testing of new car dealerships in Chicago, and found very credible evidence that the dealerships were offering higher prices to black customers than to white customers on the basis of race. In other places, I've been able to establish evidence that there are policies that are producing unjustified racial disparities. In a study surrounding the Los Angeles Police Department, I was looking to see if there were unjustified racial disparities. Now those disparities might be caused by racially-contingent police decisions, but they could also be driven by making their decisions contingent on non-race factors that just disproportionally hurt minorities.

JD: What specific policies do you believe have a disparate impact on minorities?

One example would be in car finance, some auto lenders have policies that give lower interest rates to new college graduates. That's a policy that's not directly contingent on race, but if new college graduates are disproportionally white, then that policy is going to have a disparity that is disproportionally born by non-whites. Then, there's a very separate issue of whether it's a justified or an unjustified disparity. There are some disparities that might be disproportionally born by minorities, but they might be justified. In the United States today, minorities have disproportionally lower credit scores. If you charge higher interest rates to people with poor credit scores, minorities will be affected, but that might be a justified disparity. Charging higher prices to someone, not because they have poor credit or impose more costs on you, just because they don't have the ability to shop around is not a credible justification for a policy that disproportionally burdens minorities.

JD: What about federal level issues such as drug laws? Do you think they are more issues of disparate treatment or disparate impact?

At the federal level, there are often laws that create disparate treatment on the basis of race, but it becomes a context specific question to the extent to which disparate impacts are prohibited or not. There can be claims that are made against police departments that have a certain drug policy or prosecution policy, but with regard to a statute itself, that for example would give higher penalties for crack than non-crack cocaine, those are not usually susceptible to a disparate impact challenge.

Plotting the Next Moves in Obama's Chess Match with Iran

By Sam Yebri and Josh Lockman

Sam Yebri '03, former editor-in-chief of The Politic, *is an attorney at Proskauer Rose and President of 30 Years After, an Iranian American civic-action organization. Josh Lockman '04 is an attorney at Latham & Watkins and a Fellow at the Truman National Security Project.*

As President Obama surveys the perilous landscape of the Middle East after his first year in office, his next moves in the chess match over Iran's nuclear weapons program could be decisive. While the President should be commended for vigorously engaging with the Iranian regime, now is the time for stronger action. The acquisition of nuclear weapons by this regime not only constitutes a grave threat to the United States and the security of our allies, but could also solidify the regime's tenuous grasp on power, potentially dealing a fatal blow to the aspirations of the Iranian people for reform, freedom and human rights.

> *"While pursuing tougher action against the regime, the President must continue to support the Iranian people in their efforts to reform their government."*

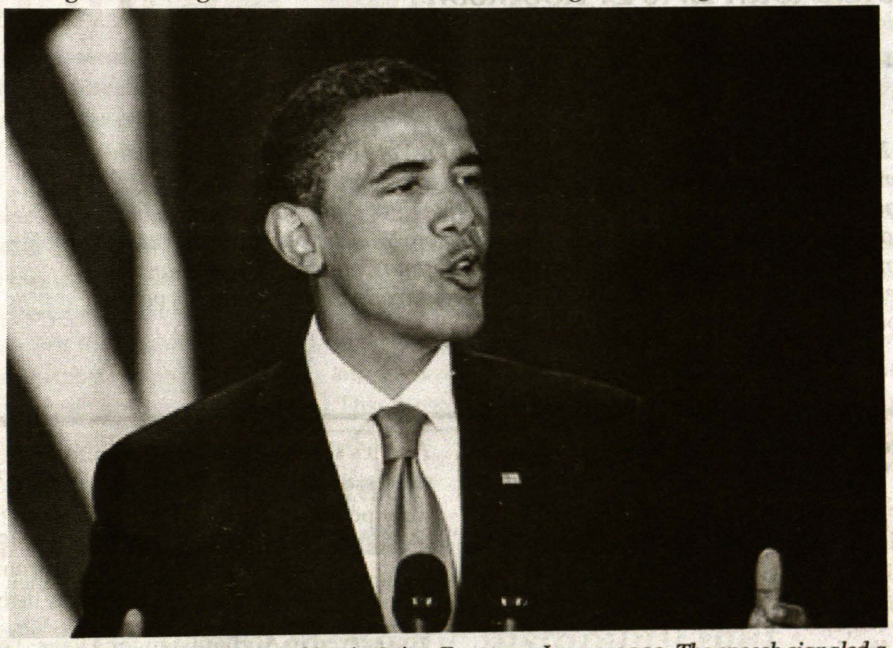
Obama would thus be well-advised to pursue broad economic sanctions against the regime while urging the European Union and Russia to join in meaningful sanctions. At the same time, the President should increase his rhetorical support for the protesters in Iran. By ratcheting up economic and political pressure on the Iranian regime while supporting the Iranian people, President Obama can synthesize his vision of a muscular American foreign policy outlined in Oslo with his landmark outreach to the Iranian people and the Muslim world at large.

First, the White House should not hold up or water down the Iran Refined Petroleum Sanctions Act, which the House of Representatives recently passed with overwhelming bipartisan support. This legislation directly targets companies that aid Iran's petroleum sector, including shipping companies and insurers, and will be instrumental in exerting greater pressure on the Iranian regime. The strategic objective of sanctions against Iran is to alter the regime's behavior and its cost-benefit analysis. By implementing broader, so-called "crippling" economic sanctions, the United States, in partnership with the E.U. and potentially Russia, must make the cost of developing nuclear weapons sufficiently high to outweigh the benefits of such a choice.

Although the White House has signaled a preference for focused, targeted sanctions, broad sanctions against the Iranian petroleum sector will serve as a powerful negotiating tool, both in deterring the regime from developing nuclear weapons and in encouraging tougher action from the European Union and Russia. The efforts of Under Secretary of the Treasury Stuart Levey in pursuing punitive measures against the Iranian regime's financial assets should be strongly supported to complement the broad sanctions against the petroleum sector. In his Nobel Prize acceptance speech in Oslo, President Obama warned that "those regimes that break the rules must be held accountable [and] sanctions must exact a real price." After multiple rebuffs to American diplomacy by the regime, broad sanctions will send a powerful message to the Iranian regime that consistently flouting the international community will have consequences.

Moreover, the President can use the threat of wielding broad sanctions in his efforts to lobby Europe and Russia to adopt meaningful sanctions as well. As Iran's largest trading partner, the E.U. could effectively isolate the Iranian regime. In 2008

alone, the E.U. exported nearly $16 billion in goods to Iran. Meanwhile, Russia, which has benefited from large arms exports to Iran over the last decade, has also indicated it is amenable to sanctions against the regime. As China looks increasingly unwilling to join any UN sanctions, E.U. support and Russian cooperation on sanctions against the Iranian regime will be critical.



President Barack Obama speaking in Cairo, Egypt, on June 4, 2009. The speech signaled a new American approach to Middle Eastern relations, yet it is unclear whether the United States' position has improved or worsened. (Creative Commons)

Finally, building upon his speech in Oslo and his historic overtures to the Iranian people, President Obama should deliver greater rhetorical support to the Iranian protesters. Obama was wise to take a cautious approach to the post-election demonstrations last June, given concerns that his public support could enable the regime to blame the U.S. for the demonstrations. However, it is becoming increasingly clear that a broad swath of Iranians opposes the current regime. In June, the protesters chanted, "Where is my vote?" now they chant, "Death to dictator." Where they once called for "Death to America, Death to Israel," the Iranian people now shout "Death to Russia, Death to China," a clear condemnation of Russian and Chinese opposition to sanctions.

Since November of last year, Iranian protesters have chanted "Obama, Obama, either with us, or with them!" In his Nobel Prize speech, President Obama answered these calls, promising to "bear witness to the quiet dignity" of "the hundreds of thousands who have marched silently through the streets of Iran." While pursuing tougher action against the regime, the President must continue to support the Iranian people in their efforts to reform their government, seek freedom and secure human rights. Such direct appeals by the President to the Iranian people could also be delivered via new social media and communication technologies.

Skeptics have argued that sanctions could backfire by raising the cost of gasoline in Iran and enriching Iran's Revolutionary Guards. However, direct appeals by President Obama to the Iranian people may offset propaganda disseminated by the weakened regime, especially given its disastrous management of the economy. Furthermore, targeted financial sanctions against the regime's financial assets could prevent key members of the regime from profiting from the gasoline sanctions.

Without a constructive U.S.-Iran relationship, there can be no stability in the Middle East. However, public criticism of the Iranian regime and support for the Iranian people are not mutually exclusive with negotiating with the regime over its nuclear weapons program. American interests in an Iran free of nuclear weapons are directly in line with the interests of Iranians who seek democratic and social reform. Thus, hopes for a transformation of the current Iranian regime hinge on the chess match - a game that originated in ancient Persia - over Iran's nuclear program. The next move is the President's - and it could be decisive.

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On the Ground in Afghanistan

An interview with Eric L. Robinson

Conducted by Jacob Effron

Now an MA candidate in International Relations at Yale University, Eric L. Robinson completed ROTC as an undergraduate and was commissioned by the U.S. Army upon graduation. Robinson served in active duty from July 2004 to June 2009 and achieved the rank of Captain. He spent from March 2008 to March 2009 in Afghanistan as a Civil Military Operations Officer and Detachment Commander. He shares his thoughts on President Obama's recent troop increase and his views on the country's future.

The United States has been in Afghanistan for more than eight years now. What lessons have the military learned since the start of the war? Looking back what different strategies could the military have employed from the beginning that would have improved operations in Afghanistan?

The advent of the concept of counterinsurgency, its development in military doctrine, and its acceptance by the military are real demonstrations of lessons learned. From 2001 to 2006, and this applies in both Iraq and Afghanistan, military operations were overwhelmingly focused on killing enemy fighters. There was passive attention paid to political issues encompassing economic grievances, religion, and cultural problems that often gave rise to violence. The military was overwhelmingly oriented toward those who were actually carrying weapons on the battlefield. Operations were typically directed at simply killing members of the armed opposition. That didn't work out very well. It was a short-term or tactical response to an overarching strategic problem.

Counterinsurgency is nothing new, but the way it has become popularized and widely recognized within the military, unfortunately, is new. It's new in the sense that in the post-Vietnam era a lot of the lessons learned in Southeast Asia were discarded in favor of orienting ourselves and preparing the U.S. military to fight the Soviets. The concept of being involved in a conflict where there is a non-uniformed enemy, where the conflict is overarchingly political in nature, and the violence a mere side-effect of political grievances, had to be relearned throughout the military. Now in 2010 our four-star generals McChrystal and Petraeus understand it so well they've literally written the book on it and there is a generation of colonels and captains below them who are also well-versed in it account of personal experience and study. And it's slowly percolating down to the soldier level. That's the lesson learned: That contemporary conflict is overarchingly political in nature; that the violence is a side-effect of it; and that for us to focus on the violence alone does not address the root problems of insurgency.

You served in Afghanistan for a year. Did you get a sense of the overall Afghan sentiments toward U.S. soldiers?

The overall sentiment I received was that American soldiers and the intervention of the entire international community were welcome. But that welcome was deteriorating. Back in late 2001 and early 2002, there was probably between 75% and 85% of the Afghan population that said nothing needs to change here and that the international community is here in our best interest. The problems of corruption, civilian casualties, and the large, drawn-out nature of the campaign have eroded that base of support. To this day there are a few points of residual disappointment with the international forces.

First and foremost is the concept that the Afghans genuinely like Americans and British soldiers, at least in my experience in the Khost province. There was a question over whether or not they respected us. That was based upon the fact that base law and order really had not been established in the provinces. The Afghan government remained incapable of doing anything from something as simple as a traffic ticket, to prosecuting a person accused of insurgent activity in an area. There was an ever-increasing reminder that the emirate, the Taliban-led insurgency, though they may be religious country bumpkins and brutal, had a sense of law and order that they would bring into effect. It may not be pretty, but it will be there. There was an internal debate within the Afghan population with whom I interacted concerning whether we

ought to continue to wait for the international community and the Afghan government to deliver these basic services, or just kind of admit that the insurgents were the ones who were going to deliver this for us.

Did knowing these sentiments while you were there change the way you interacted with the Afghans? Did you see it visibly change military policy while you were there?

The decision points which I had to render were fairly minor. I was only a captain over there. But it helped me appreciate their point of view, the overarching political nature of the conflict. The biggest threat we had was not the Taliban overrunning our bases but the Taliban providing better law and order in the rural districts. Government policy and government services were really the hinge of the war. That recognition, however, was hardly new. By the time I had come to Afghanistan in early 2008 there was a popular recognition within the international community, and the U.S. military specifically, that that was really the hinge where we had to develop government capacity. We really had an obsession about it, trying to find Afghan leadership, and give them the kind of resources they needed to succeed. We had some success and we had some real setbacks but it wasn't anything new. Comments like that coming from the Afghans gave what we already understood a sense of real urgency.

> *"The idea is to drain the swamp, and thereby get rid of the sources of political, social and economic instability that give rise to regional insurgency."*

Many believe that the United States should withdraw from Afghanistan because they have an ill-defined mission that is unwinnable. What is the U.S. military's mission in Afghanistan? What do you think the mission should be?

For the military it's an overarching "counterinsurgency plus," as David Kilcullen would call it. This aims to limit the ability of the Taliban-led insurgency to conduct military operations against the Afghan government in order to give the Afghan government the time and space it needs to establish its own security apparatus and to develop the intellectual capacity and technocrats in key positions that can start levying basic goods and services, so that the people of Afghanistan, particularly in the Pushtun belt, recognize that they have a government that is working to meet their day-to-day needs. The role of U.S. forces and the international community is to provide that space for the Afghan government. By establishing a form of a representative government in Afghanistan, the sources of instability that give rise to violent insurgency in the past would be limited. Violent insurgency in the past in Afghanistan has had bad friends, whether it be al-Qaeda and its associated movements or the Taliban in Pakistan. The idea is to drain the swamp, and thereby get rid of the sources of political, social, and economic instability that give rise to regional insurgency.

That's all the right idea. That is the responsible reaction of the international community, and they recognize these things need to be achieved for the best interest of Afghanistan, Pakistan, the region, and the entire world. My departure from that individually comes from the recognition that it may be impossible. It may be too overarching of a goal. The patience especially within the coalition is running short. Despite the heroic efforts of Canadian soldiers in Kandahar, Brits in Helmand, Dutch in Oruzgan, French in Kapisam, and U.S. soldiers across the south and east, we can only buy so much time. In a counterinsurgency environment, foreign soldiers can't win the war. We can only buy time for a host-nation government to decide that it wants to win. And the Karzai government is just not an institution that Afghans, specifically Pashtuns, feel they should be fighting for. That's the shortcoming of the policy. I hope this thing works. It's in the best interest of the international community for the Taliban to suffer military and political defeat. It's in the best interest of the U.S. and international community to kill as many members of al-Qaeda and its associated movements as possible. But is a Karzai-led government that is capable of winning insurgency possible? I don't know. And that's the 30,000-soldier question.

Do you think there's a more realistic mission that might be a more toned-down version of that?

Vice President Biden is one of the smartest and most well prepared foreign policy minds in Washington. Characters like him and Senator John Kerry who do their homework, Karl Levin, Lindsey Graham or Chuck Hegel before he left the Senate – these people aren't blind doves. They recognize that force is sometimes necessary. They also have a keen recognition of goals versus capabilities. The vice president articulated ideas of a plan that would effectively limit the scope of the counterinsurgency. Rather than having American, Canadian, Dutch, British, and French soldiers scattered throughout the Pashtun belt trying to secure populations, rather than focus-

ing on protecting population centers across a country that's simply enormous, Biden proposes we try to find key population centers and secure those as best as possible.

We would use provincial reconstruction teams in Afghanistan to continue to develop the economic infrastructure and the capabilities of the government. Pair that with continued special operations forces activity against insurgent leadership and mash all of that with a similar program on the Pakistani side of the Durand line. I'd look at it from a worst-case scenario that in this region, greater Pashtunistan, the governments in Pakistan and Afghanistan will have neither the capabilities nor the will to exercise the writ of government effectively. Nor do we. We may have to be in a position where we can exert influence to go after al-Qaeda and its associated movements with a great deal of violence. But we also have to limit the exposure of relative American troops to roadside bomb attacks. There are benefits to that program. It is not a capitulation.

US soldiers providing training to Afghan National Police in Kunar province. (Creative-Commons)

How has the increase in Taliban power in Pakistan affected U.S. military strategy in Afghanistan and the inner-country dynamics?

One of the best things the Obama administration has done is to recognize that this is a regional power. It's AFPAK; that the Durand line simply separating different Pashtun agencies or provinces is a colonial construct that helps no one. Mullah Omar's Taliban effectively ruled most of Afghanistan until late 2001, which is different from the Pakistani Taliban in that they're populated by different tribes and have different leaderships. But they are key components of a regional insurgency. They aren't always following the same set of instructions, but they're always generally trying to achieve the same sort of goals which is regional, Pashtun-based, Deobandi religious autonomy from either Islamabad or Kabul.

We're starting to see that their tactics are getting increasingly similar. Whether it be the assassination of Benazir Bhutto or the attack on Rawalpindi in Islamabad, they are just like the other subset of the Taliban insurgency launching attacks in Kabul. They recognize both the efficacy of causing casualties among military organizations, be they the Pakistani military or NATO forces. They also recognize the effect of destabilizing non-cooperative tribes on both sides of the border. They will eliminate tribal elders that aren't completely in league with their political objectives. They're not the same organization but there are strong parallels between the two. The Afghan Taliban is primarily Kandahari, Oruzgani and Balkhi in a lot of their orientation, and the Pakistani Taliban is primarily Waziri and Asud. There are different linguistics, different regions, but they're both fighting for autonomy against governments they see as apostates toward, and pawns of, the international community.

President Obama recently pledged to increase the troop count in Afghanistan by 30,000. What is your opinion on the troop escalation?

I'll sketch it out this way: The president is trying to achieve a full counterinsurgency effect. Afghanistan has been constantly under-resourced since the war started; he's trying to give his commanders the soldiers they need. I think that's the responsible choice of a commander-in-chief. He has the legal and moral authority to do it and let's hope it works. The difficulty lies in the idea that a lesson the U.S. military and political establishment learned in 2007 was that of the Iraq

surge. The wars are drastically different; the countries are drastically different. The narrative I fear the military, or at least certain policy-makers, are seeing is that especially among American conservative political establishment Iraq was going badly because we didn't have enough soldiers there. That was a recognition. We put more soldiers in, things settled down, now Iraq is good. It's not that simple. The surge worked for a range of four factors. Bob Woodward talks about this in his books on the Bush administration. It worked because you parked 30,000 extra Americans in Baghdad and the surrounding area. Baghdad, that city, the metro area, was truly the hinge of the conflict. What happened in Baghdad affected the Arbil province, the al-Anbar province, and the Ninawa province. By flooding the area with American soldiers, taking them off of these mega-bases and putting them into neighborhood combat outposts made it very hard to be an insurgent. I was in Baghdad immediately before this happened and insurgents, specifically the Shia militia operated with relative impunity. They could drive around the city all they wanted to because there weren't necessarily Americans in position to interdict them and the Iraqi security forces were in collusion with them.

Afghan National Army soldiers conduct drill practice at the Kabul Military Training Center (KMTC) facility in Kabul, Afghanistan, February 3, 2009. (CreativeCommons)

But now you have the streets flooded with Americans, it's simply harder to conduct this kind of ethnic cleansing they were doing. Furthermore, and sadly, a lot of the ethnic cleansing was so successful that by 2006 that it was over. The Shia took a lot of the neighborhoods they wanted, so there was no need for further violence. That gave the appearance of violence dropping off precipitously. Another factor is that parts of the Mahdi army unilaterally gave up fighting, the reasons behind which are still murky. But one of the major paramilitary destabilizing forces in Iraq just stopped fighting. And then finally American special operations forces had great success in removing leadership from key insurgent groups. You put these factors together and that gives you the surge.

Also, the Sunni Awakening was an important factor. The Sunnis rejected al-Qaeda's vision that "we are your vanguard" and said, "Hey we can form a paramilitary and secure our own neighborhoods and the Americans are going to allow this to happen." So with these factors, violence in Iraq dropped off dramatically. The performance of General Petraeus in that is one of the more remarkable feats of generalship in American history. And that's basically what happened in Iraq; of course it's subject to criticism and refutation but it's not that easy in Afghanistan. 30,000 additional soldiers will help and they can put more soldiers out there but there is no true hinge of the insurgency. The insurgency is incredibly regional. There is the Helmand river valley that's one hinge; there's the city of Kandihar which is another; there's Kunar, the Nangahar province, and many more. You can't throw these 30,000 soldiers into any of these hinges; you have to space them out.

We're also picking up positions our allies have evacuated. The Canadians and the Dutch are not going to be fighting there for much longer so we're losing 3,000 soldiers in that. Of those 30,000 soldiers a lot of them are support soldiers or aviators. Of the actual on-the-ground counterinsurgency fighters, we hit the 15,000 mark pretty quickly. In the areas in which this force is applied, the American marines, air foreman and sailors have demonstrated they have the ability to limit insurgency and make it much harder to operate as an insurgent. It goes back to the problem that we can buy time for political progress but the Karzai government must come in and establish some semblance of stability, security and recognition that government is here to provide goods and services to the people. All the blood in the world can buy

that time, but unless they're going to invest in it those 30,000 soldiers, it may not achieve the effect the President wants.

When he announced the troop surge, President Obama promised that the United States' forces would withdraw in 2011 and hand over power to the Afghans. Based on what you saw in your time in Afghanistan, how realistic do you think it is that the Afghan security forces will be ready to take over?

There are elements of the Afghan army that are enormously competent. The Afghan soldiers at the company level commanded by a captain and below are fine soldiers. They take care of their equipment; they're respectful; they're pretty good about staying away from drug abuse; their bases are immaculate; their vehicles all in good maintenance; and they seem to have genuine pride in their country and role as soldiers. This is in sharp contrast to my experience with the Iraqi army who would often tear the electrical cords out of the wall and sell them. The Afghan National Army has enormous potential. The problem is the concept of the Afghan National Army from its establishment has been that its force structure is oriented toward an external enemy. They are oriented toward defending against an invasion from Turkmenistan. They are there to fight traditional battles. That is the way they have been trained and the way their officer corps envisions their organization. The Afghan army needs to be forced down the line of being closer to a paramilitary when out in population centers on a day-to-day basis performing counterinsurgency.

"The Afghan army needs to be forced down the line of being closer to a paramilitary when out in population centers on a day-to-day basis performing counterinsurgency."

NATO can ensure the territorial integrity of Afghanistan. That's not a problem. Nobody is going to invade as long as NATO has this area under its responsibility. The Afghan army have to recognize that it can't stay on its base. The Afghan army seems to be more comfortable with staying on base, foraying out for temporary operations which it performs quite admirably but then going back to base. The army needs to do what counterinsurgency doctrine suggests and actually go out and take an Afghan army captain and put him in a village with Afghan tribal leaders and an Afghan district sub governor and they need to come up with some sort of political-military solution to the local problems. Right now it's American platoon leaders and American captains that are going out to these villages and trying to do that and it really needs to be the Afghan army. When I was there at least they weren't doing that.

The next question is the Afghan police. They were a catastrophe when I was there. There's a structural problem in Afghanistan. Part of having a legitimate police force that can do law and order and that isn't just a means of shaking people down for tolls is literacy. The literacy rates in Afghanistan are catastrophic. The police are almost entirely illiterate, because the higher quality recruits almost exclusively go into the army. This illiterate police force is almost exclusively kept in their home districts meaning they are often bound by local custom, local tribal allegiances and local expectations. It's just a recipe for an overpaid mess. Whenever an Afghan drives by an Afghan policeman, and he sees them smoking hash on the job, listening to the radio, or if they can't read an identity card. it does not give the image of legitimacy that the Afghan government needs. The Afghan army does that. There is a limited success story but there's also a real sink hole. These programs, especially the Afghan police, have only been under the responsibility of the U.S. government since 2006. It was a never-ending process of trying to enhance the capacities of these guys. The police have a lot of work.

But back to your original question, is the 18-month time horizon feasible? I'm not sure what the key indicators would be for the security forces, but I think we need to establish key indicators for the Karzai government. There have to be significant reforms on the means by which funds are distributed to the provinces, the way that provincial governors are appointed to their positions and the way that district sub governors are appointed to their positions. What I'm suggesting is essentially we have to encourage them to conduct constitutional reform. Each province is appointed by the President. It's one of his main ways of leveraging influence outside the capital; he appoints the governors. They need not be from the provinces; they're often not. This governor in turn appoints the sub governors. A means to give people a better connection to the government could be feasibly implemented by some kind of direct election of these people. That's not in their constitution, but these are the kinds of endemic government problems that we witnessed in Afghanistan.

I think the 18-month time horizon is better for the Karzai government to set expectations to enact real base-level political reforms because that's truly what counterinsurgency is about. If the government starts governing, then, yes, we should stick around because a side-effect of that will be an

increasingly competent police and military. But if the government remains this hollow shell of corruption and nepotism, the army and the police will simply have nothing to fight for, and at the end of 18 months maybe the President will decide to say we really don't belong here any longer.

You've talked about a lot of different potential futures for Afghanistan. Where do you see Afghanistan in two years? Do you think Afghanistan will be able to have a successful democracy? What do you foresee the Taliban's role being?

Afghan President Karzai with entourage. (CreativeCommons)

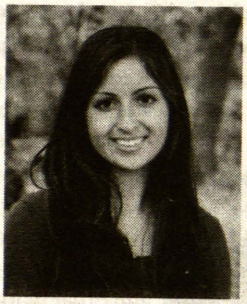
I wish you asked me this question in April 2010, because then I'd have more indicators. Violence tends to slow down in the winter months when the insurgency essentially goes into a resupply cycle. So, in April there's going to be a simultaneous increase of insurgent activity in areas that are wintered in or snowed in, and there will be an increase because simply more NATO forces will be exposed to violence. The mid-months, April through July of 2010, are going to see, I fear, a remarkable spike in violence directed at NATO forces. I fear there will be a significant amount of casualties. That spike is almost a certainty. Whether it's a spike or a more long-term increase will be the point on which we can better postulate what will happen in 2011.

There was an enormous spike in violence after the surge in Iraq because there were more soldiers exposed to the fighting, but after a few months violence decreased dramatically. If we see the same pattern in Afghanistan there might be positive indicators that suggests we in the international community have regained the momentum against the insurgency. With regaining the momentum, maybe it's the time for the Karzai government to start thinking about trying to reconcile elements of the insurgency. I fear that the Karzai government is not going to be a model democracy. This is a society that's had a history of oppression of one party against the other and back and forth. I hope that minority rights are guaranteed, but that is up in the air. I don't know whether or not the Hazara who have demonstrated a remarkable ability to improve their political, economic and educational state in the past years, will have a violent reaction against their improvement.

I think that the lesson from the Bush era is that democracy and human rights are noble goals but achieving them is very difficult. Local culture, local concepts of right and wrong, local concepts of the way that justice is supposed to be brought about vary greatly from the Western tradition. I don't like that. I'm quite happy with the way that law and order works in the United States. I think we have a governmental system that's fair and responsible in the aggregate. I wish that rights were protected around the world in the way that they are for the most part in the United States. But that's truly just a wish. I think that we have to recognize that some societies have different values. I'm not placing a moral judgment on that. I have my own preferences. Afghanistan is going to look different, have a different set of values.

The hope and the aspirations for this continued military campaign are that whatever system Afghanistan ends up with will have a lower potential for regional insurgency and will provide some protections for ethnic and religious minorities, as well as for women. And also that Afghanistan will no longer associate itself with al-Qaeda and its associated movements and this transnational Jihadi insurgency which seeks to cause as much violence as possible in the capitals of the West in order to change our foreign policy. That's the goal: to find something with which Afghans can live that gives them popular recognition, rendering the maintenance of friends like al-Qaeda and its associates irresponsible in the twenty-first century.

Moving on: Kosovo's Future After Independence



By Deirdre Dlugoleski

Deirdre Dlugoleski is a freshman in Ezra Stiles College.

To the inhabitants of Pristina, bursts of gunfire and the glare of explosions in the night sky must have been nothing new. The chaos of February 17, 2008, probably looked familiar from a distance – except for the surging, celebrating crowds thronging the streets. Kosovars flocked to unveil new monuments to independence as news networks around the world scrambled for coverage. The parliament of the small UN-administered province of Kosovo had, to the noise of celebratory gunfire and fireworks, declared independence from Serbia.

But reality has quickly set in. In spite of its independence, the new state still relies on a combination of international peacekeeping and justice forces to maintain even a semblance of stability on the ground. K-FOR and UNMIK (peacekeeping forces led by NATO and the United Nation, respectively) still maintain a significant presence in Kosovo, and EULEX, the long-overdue EU legal monitoring mission, only just arrived in December 2009. Almost two years on, the question remains: Can the new state survive? Can it function?

> *"In spite of its independence, the new state still relies on a combination of international peacekeeping and justice forces."*

At first glance, the answer would seem to be yes. Only two months after its independence, Kosovo adopted a new constitution, which then came into force in June. The government has committed itself to protecting minority rights. The state also applied for membership to the World Bank and the International Monetary Fund. And on November 15, 2009, Kosovo successfully completed its first round of elections to the satisfaction of its European monitors – elections that, for the first time, the Serbian community did not boycott. According to the K-FOR report on local elections, participation in some Serb municipalities rose to over 20%. By Western standards, this turnout is unsatisfactory. But consider the context. For communities that have thus far denied the legality of the government responsible for these elections, any participation at all can only be an improvement – especially since, prior to the elections, Serbia called on the Serbian community in Kosovo not to take part. There may be a glimmer of hope for a multi-ethnic democracy.

But in spite of this progress, the government finds itself sorely lacking in one crucial area: It needs the support of its own people. And for that to happen, Kosovo's political infrastructure needs a serious overhaul. Possibly the worst obstacle comes from the judiciary. A stable legal system forms a particularly critical element in a country working to build confidence in its governing abilities while desperately trying to win at least the approval, if not the love, of its Serbian minority. Kosovo's judges and prosecutors have not worked for nearly ten years; before independence from Serbia and especially while Slobodan Miloševic retained power, Kosovar Albanians were driven from their jobs. But lack of experience is the least of their worries. Society in this region of the world has, for hundreds of years, revolved around clan loyalty. This tendency does not change overnight, and undermines the reliability of witnesses in any given court, as they are often threatened by, or feel more loyalty to, their clan than to society at large.

Local judicial authorities also face threats. In the cases of war crimes, due to organized crime and the almost constant ethnic

conflict that Kosovo faces, many local prosecutors and judges find themselves unable to intervene for lack of security. In the meantime, a queue of cases that need attention is building up. According to Transparency International, the Economic Court has a settlement rate of roughly 50%, while in 2008 the Supreme Court apparently resolved more cases than were actually filed. Many of these unfinished cases are of critical importance. The question of stolen property during the war, for example, will figure heavily into the relationship between the Kosovar Albanian government and ethnic Serbs in the country.

The people themselves feel understandably skeptical at best toward their judiciary. According to the Balkan Investigative Reporting Network (BIRN), the people of Kosovo have less faith in their judiciary than in any other public body.

Joy: Kosovars celebrate their independence in Pristina and show off their new flag. (CreativeCommons)

Without effective and lasting judicial reform, Kosovo simply cannot move forward as a state. The EU has attempted to address this problem with EULEX – a judicial mission to Kosovo that describes itself as "a technical mission which will monitor, mentor and advise whilst retaining a number of limited executive powers."

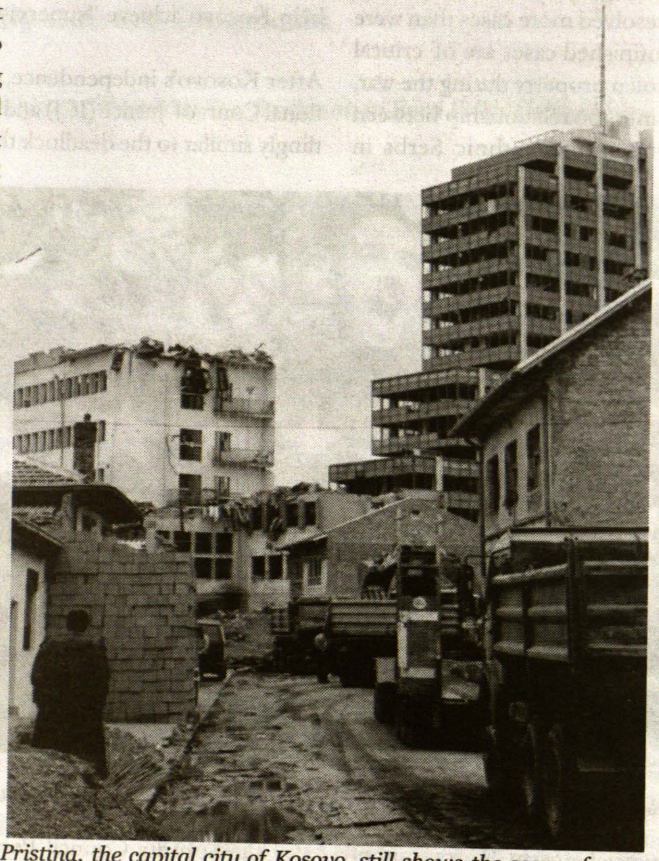
But this state of affairs drives home another uncomfortable point. Whether Kosovo will succeed or fail has never, in reality, rested with its own policy makers. Kosovo's future depends, as it always has, on the decisions of other actors. Take EULEX for example. The EU-directed mission could not even arrive on the ground before Russia gave its approval. Foreign Minister Vladimir Titov demanded that any legal monitoring mission sent to Kosovo be a part of UNMIK, the UN force already in place – and controlled by the Security Council, in which Russia holds veto power – while Russian Ambassador to the EU Vladimir Chizhov delivered a "warning" to the European Union not to force the issue without Serbia's approval. Small wonder, then, that EULEX does, in fact, operate under the auspices of the UNMIK operation, and now advertises that it works "under the general framework of United Nations Security Resolution 1244" – the same resolution to which Russia refers when it argues that Kosovo's independence was a severe breach of international law. And yet EULEX, as Finnish diplomat and Nobel Peace Prize winner Martti Ahtisaari envisioned it, was supposed to help Kosovo achieve "supervised independence."

After Kosovo's independence, the situations in the International Court of Justice (ICJ) and the Security Council look startlingly similar to the deadlock that Ahtisaari himself attempted to break from 2005 to 2007. The US and Russia are once again facing off over Kosovo's legality. Serbia has brought the question of Kosovo's independence to the ICJ on the grounds of a violation of UN Security Council Resolution 1244.

But the Security Council Permanent Five (those with veto power) also submit arguments to the Court. Unsurprisingly, Russia and the United States have submitted opposing arguments; China will no doubt echo Russia (with Taiwan in mind), while Britain and France will almost certainly support the United States. Russia has always defended Serbia – a position that it will hold all the more stubbornly as Serbia's close neighbors, and even Serbia itself, look toward EU membership. While Russia has repeatedly stated that it has no problem with EU expansion, the veracity of this claim is doubtful at best. Could it possibly have been a mere coincidence that Gazprom took over Serbia's oil monopoly, NIS, just as negotiations with the EU looked as though they might move forward in January 2008? Russia will do all it can to lure Serbia away from Brussels. In the meantime, Russia contends that Kosovo's independence does not comply with international law, while the United States maintains that international law does not directly address declarations of independence at all.

The looming questions behind this debate will make it decidedly difficult for Kosovo to gain much ground in terms of recognition or UN membership. States whose concerns

echo those of Russia and China – Cyprus, Greece and Spain, for example – cite concerns that recognition will only breath life into breakaway factions elsewhere. Spain in particular has cause for alarm; the Basque regional government has already given its praise to Kosovo's success in gaining independence. Spain removed its peacekeeping troops last March. Only 63 of the 192 UN member states have recognized Kosovo's independence so far. Kosovo may be a reality and a dream come true for some, but in the eyes of the international community, Kosovo itself comprises just another ideological battle.



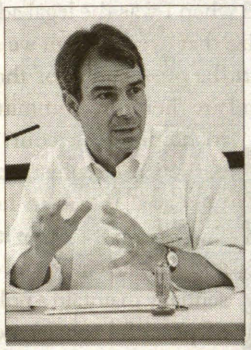
Pristina, the capital city of Kosovo, still shows the scars of war. (CreativeCommons)

The European Union, however, will prove the decisive factor in Kosovo's future. Kosovo has a ways to go before it can even reasonably consider joining the EU. Serbia, however, does not. If Serbia joins the EU, the move will undoubtedly spell great things for that country, but will probably also seal Kosovo's fate for the worse. With the election of Boris Tadic and his Coalition for a European Serbia, any possible remaining doubts of Serbia's EU aspirations vanished. In April 2009, Serbia signed a Stabilization and Association Agreement (SAA) with the EU (although it has not yet been ratified), and on December 22, 2009, Serbia formally submitted its application to the EU. This is amajor turning point in their foreign policy. The last remnant of Tito's Yugoslavia, Serbia has been a pariah in Europe since 1991. Traditionally, Serbia has maintained close ties with Russia and shunned the West. It seems Serbia has taken a 180-degree turn – a move that the EU should legitimately welcome. Eastern expansion can only help them in the balance of power with Russia (which incidentally controls the gas supply to literally a quarter of the EU member states). But perhaps we should take a closer look at Serbia's priorities. Tadic has promised his constituents not to recognize Kosovo. Serbia is now looking at the EU for two major reasons: boosting its economy, and flattening Kosovo. Although 22 of the current 27 EU member states have already recognized the new country, should Serbia join the EU, Kosovo's chances of success will shrink considerably. A European Serbia would not only hamper any membership aspirations that Kosovo might have in the future, but also hit their trade. The Netherlands, after all, blocked an EU trade deal with Serbia from April 2008 to October 2009, although many other member states supported the agreement. Surely Serbia, while understandably frustrated, would relish the chance to do the same to Kosovo in the future?

None of these developments, however, seem likely anytime soon. Serbia still needs to capture two more war criminals, including Ratko Mladic, the man behind the Srebrenica massacre of 1995, and deliver them to the Hague before the ascendency process can progress. Serbia also needs time to determine its own willingness to become "European." The Coalition for a European Serbia won the legislature with 38.9%, but the Serbian Radical Party, a right-wing conservative group that opposes ties with the EU, came in second with 25.9%. And the EU itself needs to handle some of its own issues before it can reasonably start considering expansion again. Budget constraints top that list; with the economic crisis, some member states' economies still have not rebounded to the levels required to support EU aspirations. The EU probably will not be able to take on any new member states before 2015. In the meantime, the Security Council remains in deadlock. So, can Kosovo survive? Perhaps it will use these delays to its advantage and at least improve its judiciary. Until these outside actors take further action, however, the question remains unanswered.

An Uneasy Relationship: The US and the International Criminal Court

An Interview with John Bellinger III



Conducted by Leo Wallo

John Bellinger III is a partner at the Washington DC law firm Arnold & Porter and was the legal advisor to US Secretary of State Condoleezza Rice.

How much of the opposition to the International Criminal Court in the twenty first century was the result of deep seated American historical prejudices, and how far was it the result of the more short term political situation?

The US attitude towards an international tribunal has been ambivalent over time. The US support for the concept of a comprehensive international criminal court goes back at least to the first Bush administration, where both the administration and Congress expressed support for the idea of an international criminal court to try those responsible for genocide, war crimes, and crimes against humanity. However, Congress in passing the resolution for such a court emphasized that there would have to be adequate protections for the United States for due process. The Clinton administration supported and participated in the drafting of the Rome Statute but US goals to protect American officials from politically motivated prosecutions were not achieved.

> *"U.S. policy towards the ICC has been relatively consistent over time and...U.S. concerns about the ICC go back to the Clinton administration."*

President Clinton ordered the Rome statute signed, but then stated that because US concerns about potentially politically motivated prosecutions were not addressed he would not send it forward to the Senate for approval and recommended that his successor do the same. Although historically the US has supported the concept of an international criminal court, the concerns about the ICC did not begin with President George W. Bush but rather with the Clinton administration.

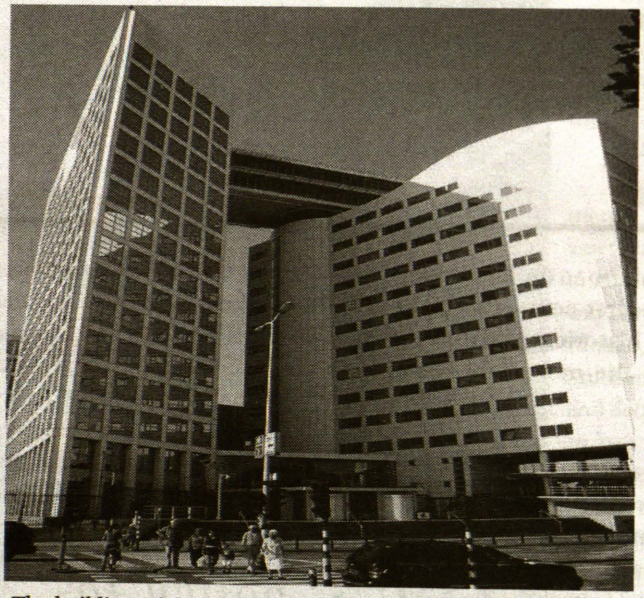
To answer your question more precisely of the likelihood of a U.S. official or service member being tried by the ICC: I there think there is a real concern about the threat of politically motivated investigations. That is really just a matter of numbers: the US is more active in different countries around the world, whether in peace keeping or military intervention, than any other country, so it's just statistically more likely to be accused of misconduct. There is a good deal of anti-Americanism around the world. I personally think that it is not terribly likely that a US official or service member to be actually prosecuted by the ICC, but that possibility exists, and as I have emphasized that is a concern that began under the Clinton administration.

What is different in America's response to justice in Sudan than was the case in the tribunals in Rwanda or the former Yugoslavia?

The United States has been enormously supportive of international criminal justice generally and other ad hoc criminal tribunals which don't raise the kind of concerns instigated by the ICC. America has provided more financial, political and diplomatic support for other tribunals like the ICTY (Yugoslavia) and the ICTR (Rwanda) and the special court for Sierra Leone than any other country in the world. So it's frankly both ironic and wrong that critics of the US charge it does not believe in international criminal justice, when in fact the United States has provided more support for all of these other tribunals than any other country.

Now with respect to Sudan the Bush administration did more to support the ICC than the Obama administration has done

thus far. During the Bush administration, despite the well known concerns about the ICC, the administration did not object to the referral of the genocide in Sudan to the ICC. We did not veto UN Security Council resolution 1593 which referred the genocide to the ICC, and we continued to make regular statements of support and to offer intelligence for the chief prosecutor in his investigation in Sudan. In fact the by the end of the Bush administration in 2008, when some other countries attempted to block the prosecutors' arrest warrant for President Bashir in Sudan, Secretary Rice said that we would veto in the security council any effort to do that. So the Bush administration, despite its concerns about the court in general, was quite supportive and pragmatic in its approach to the ICC's investigation in Sudan. That has not changed in the Obama administration, but the Obama administration has not done anything more than the Bush administration had done in that regard.



The building of the International Criminal Court in the Hague (STR/AFP/Getty Images)

Recently the Obama administration made its first change in position with regards to the ICC. It took them ten months to do this, but finally in mid-November they announced that the US would send observers to the meeting of the Assembly of States Parties. So that was a positive step towards more engagement with the ICC. It's interesting that it took the Obama administration almost ten months to make this decision, but it's almost even more interesting that the announcement that the US would send observers was wrapped in a long series of statements about continued concerns about the ICC, which sounded as critical as anything that the Bush administration had said about the court. Rather than emphasizing any change in policy, the Obama administration itself has emphasized the continuity of its policy with the constructive policy of engagement with the court that began in 2005 when Dr. Rice became the Secretary of State and I became the legal advisor.

The ICC points out that a majority of crimes against humanity are not committed between sovereign states during times of war, but domestically, within states themselves. Does America's non-participation emasculate the power of the court?

It is certainly very difficult to operate an effective international criminal court without the financial, diplomatic, intelligence and military resources that the United States has to offer. That's a decision that the other Rome Statute signatories made in 1999 by not addressing the concerns of the Clinton administration, even if it meant not having all that the United States had to offer. The other countries have in fact hurt the court by not having the US be party.

That being said, beginning in 2005 when I was the legal advisor, the US has begun to emphasize that even though we are not a party to the court we support the prosecution of those who have committed genocide, and are therefore committed to helping the court in particular circumstances. Our goal is not to hurt the court but to help it in appropriate cases, and essentially maintain a policy of peaceful coexistence.

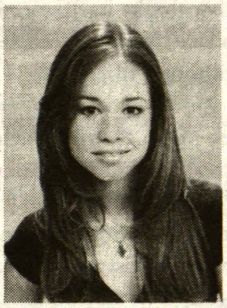
Much of American ambivalence towards the ICC seems wrapped up in concern with the court's right to prosecute the ambiguously defined crime of aggression. What actions are being taken by the court to address this concern?

This is a very important question that was left unresolved in the Rome statute. For the past ten years the Rome Statute parties have attempting to agree on the definition of what constitutes a crime of aggression, and more importantly who decides whether aggression has occurred. The real issue is what the triggering mechanism should be to instigate a prosecution. Should the prosecutor himself, or the judges, or the UN Security Council be responsible for deciding whether aggression has occurred? The permanent members of the Security Council, including the United States are unanimous in their belief that it is the Security Council under the UN Charter that is responsible for determining whether threats to peace have occurred, and that it should not be up to an individual prosecutor to make that decision.

At the ten year review conference for the Rome Statute which will take place in Uganda this summer, the parties will consider the definition of aggression. The US is extremely concerned about that because if a definition is adopted that the United States feels is too broad, and if other countries persist in trying to adopt a definition of aggression that the US opposes, it will force the Obama administration to be more critical of the ICC, even at a time when they would like to further engage.

Colombia and Venezuela

The Latest Diplomatic Crisis



By Ana Grajales

Ana Grajales is a freshman in Jonathan Edwards College.

The current diplomatic conflict between Colombia and Venezuela may have severe repercussions in the two countries. In the past eight weeks, Colombia and Venezuela's political leaders have been engaged in a flurry of accusations and name-calling that have rapidly chilled diplomatic ties across all tiers of government. This is not the first crisis between the two neighboring countries, and probably not the last. A week does not go by without an article in a top news publication in the region assessing the possibility of war between the two.

Colombia and Venezuela are inextricable linked, sharing a common history, and a common liberator. Simon Bolívar freed the "Gran Colombia" (Great Colombia) — then comprised of Colombia, Panama, Ecuador, and Venezuela— from Spanish rule in 1819. Today, Colombia and Venezuela share a common language, substantial economic ties and nearly 2,000 kilometers of border. The diplomatic crisis is therefore a tragic schism between the two brother nations, a complex crisis that disrupts the common history and relationship they otherwise share.

> *"This crisis has unveiled great contradictions in the domestic politics of the two countries."*

At the center of this controversy is Colombia's decision to allow the United States to use seven of its military bases in the programs of cooperation in the war against drugs. The greater majority of Latin American countries opened a multilateral debate to address the issue but Colombia was insensitive to the political concerns of its neighbors. Chávez interpreted the recent military agreement as direct aggression toward his regime, fearing an invasion like Iraq or a plot to assassinate him by his opposition in Colombia and Venezuela. Overall, Colombia lacked a comprehensive strategy to create confidence-building measures through diplomatic channels.

At the start of November, Chávez made the most significant movement of troops in recent years, sending 15,000 soldiers to the border. Several days before that, the frontier had been closed in reaction to the murder of two Venezuelan guards, allegedly in the hands of the Colombian paramilitary. This is the latest link in a long chain of worrisome events: the massacre of 11 young Colombian salesmen, alleged espionage orchestrated by the Colombian DAS, massive deportations of Colombians in Venezuela, the capture of supposed spies in Caracas, and incendiary criticism against the Colombian government. Colombian leaders have reported suspicions that President Chávez's government houses leftist Colombian guerrillas in the border region. Even former president Carlos Andrés Pérez has openly made reference to Chavez's connection to the FARC terrorist group in the Venezuelan newspaper "El Universal." November and much of December were characterized as a prewar atmosphere; one of hostility, growing animosity, and escalation just short of war.

Yet even within this context, Colombia and Venezuela are each other's number two trading partner, and exports to Venezuela represented nearly 3% of Colombian GDP this past year. Trade between Colombia and Venezuela involves an estimated 2,000 Colombian companies across sectors such as food, cars, and manufacturing. Prosperous trade between the two countries also means nearly one million jobs on both sides of the border. This economic dependence between the countries is put at risk because of diplomatic tensions in each crisis. The FARC and the US fuel the conflict on both sides, as the presidents of both nations accuse each other

The Colombia-Venezuela diplomatic conflict of senseless demagoguery and rivalry places many businesses

and jobs at risk. Businessmen of the two countries need the help of diplomats to improve public perceptions and allow job creation and prosperity to result from Colombian-Venezuelan relations. Economic growth, development and peace are more deeply connected than ever before, but dependent on solid diplomatic ties which Chávez and Uribe have not created. The solution to the current diplomatic conflict is active collaboration mechanisms for bridging organizational and interpersonal differences and achieving real value from the nations' partnership. What is worse, the possibility of war between the two countries could actually have a positive outcome for the two political leaders, even if a war also signifies unforgivable costs for the overall populations of the brother nations.

Colombian President Alvaro Uribe and Venezuelan President Hugo Chavez embrace in front of portrait of Simon Bolivar. (CrCommons)

This diplomatic crisis presents the excuse to evaluate deeper processes taking place in Latin America. These tensions are not between "left" and "right," but more democratic, responsible government vesus authoritarianism. María Corina Machado, founder of the Venezuelan election-monitoring NGO Súmate, points out that "populist, authoritarian regimes [are the] new tendency" in Latin America.

Colombian journalists talk about a "smoke curtain" ("Cortina de humo") used by President Chavez to distract Venezuelans from the complicated economic situation they find themselves in; with no light, no water, a growing unemployment rate, and because of the clashes at the frontier, with shortage of food products like milk and meat. At the same time, rising crime is another social ill that plagues Chávez's popularity. The crime rate in Venezuela has tripled in the last ten years. New Factories have been installed in Venezuela with the help of Iran and Russia, but disclosure of this information is not done in a proper way, and Venezuela has dramatically increased its armament. This process thus "hurts not only Venezuelans, but also the region as a whole" according to Machado.

The model in Venezuela is "dangerous for the rest of the region" because it uses scapegoating and sideline internal policies, while focusing on the idea of an external enemy. President Chávez was very effective in doing this with the previous US administration, but since the administration has changed, Chávez has shifted his rhetoric against its neighbor. Likewise, Chávez serves Colombian President Alvaro Uribe's interests, as he models a threat that could justify the modification of the Colombian constitution to allow Uribe to stay in power and confront his Venezuelan counterpart. Thus the diplomatic crisis has exposed the paternalistic undertones in Colombian politics: a democracy that thinks itself too weak to face the FARC or Chavez without Uribe.

In regards to Venezuela, María Corina Machado stresses that "democracy is much more than elections. [Holding elections] is a very risky strategy because elections could be lost, unless you have total control of the electoral process." Machado's main argument against the legitimacy of the recent elections is the growing sense among Venezuelans that there is not a secret ballot. "Thirty-nine percent of the population said the government will know how I vote. And when you realize that 28% of the electoral registry are people that are either public employees or pensioners its very troubling in terms of how they would behave." Machado has had first-hand conflict with the Chávez government: in 2005, she was charged with treason for allegedly supporting the 2002 coup attempt. Pro-democracy groups such as Human Rights Watch have condemned these charges.

In reality 82% of the Venezuelan population (according to December polls) would not support a war. They see no reason to endorse it. There probably will not be a war between Colombia and Venezuela, but the crisis has unveiled great contradictions in the domestic politics of the two countries. Both presidents need to excuse their past capriciousness and agree to resolve personal arguments and ambitions before the tensions escalate further, ensuring their diplomatic errors will not endanger regional stability. Diplomacy must be handled through rational, civilized channels that reflect the responsibility of representing the interest of millions of Colombians and Venezuelans. Brazil, despite having declined Venezuela's addition to the MERCOSUR economic alliance to avoid destabilization, poses as the natural conciliator to this regional strife that went partly overlooked by the international community.

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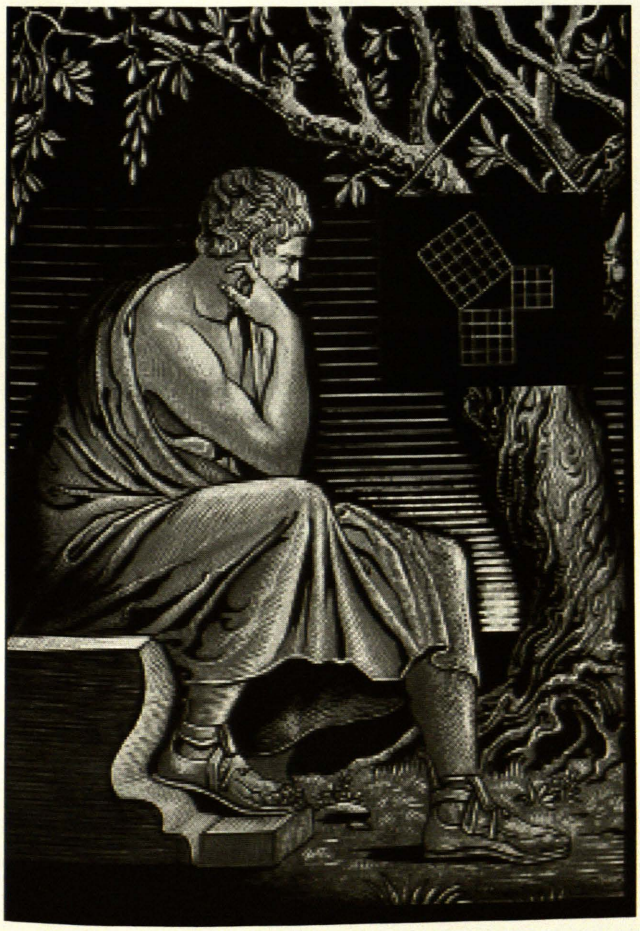

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